

NATURE AND CHARACTER OF THE CONSTITUTION & STUDY OF CONSTITUTIONAL HISTORY

1. Module 1: Origins of the Ideas of Constitution

(i) Nature and Meaning of a Constitution;

A Constitution is a set of rules and norms expressing the aspirations of a people. It fortifies the normative and legal framework that regulates and governs a country and its structures of government. A Constitution is often regarded as the supreme law of the land (grundnorm), such that all other laws (and customs) acts of government (and of its organs or agencies) derive their validity from the Constitution. In that regard, any other law (custom) and acts of government (or its organs or agencies) that is inconsistent with the constitution, will to the extent of that inconsistency, be treated as null and void (and the constitution shall prevail¹.)

On the other hand, Blacks' Law Dictionary the term Constitution refers to the fundamental and organic law of a country or State that establishes the institutions and apparatus of government, defines the scope of government sovereign powers and guarantees individual civil rights and civil liberties².

As such, the constitution is regarded as a fundamental law of the land.

(ii) Necessity of studying Constitutional History;

(a) We study constitutional history because we want to look at our past, recommend whatever is worth reforming, learn from that past and help in furtherance of improvements and aspirations of the future. This is evident from the preamble of the Constitution of the Republic of Uganda, 1995 which *inter alia* states that;

RECALLING our history which has been characterized by political and constitutional instability;

¹ Constitution, 1995 (as amended), article 2.

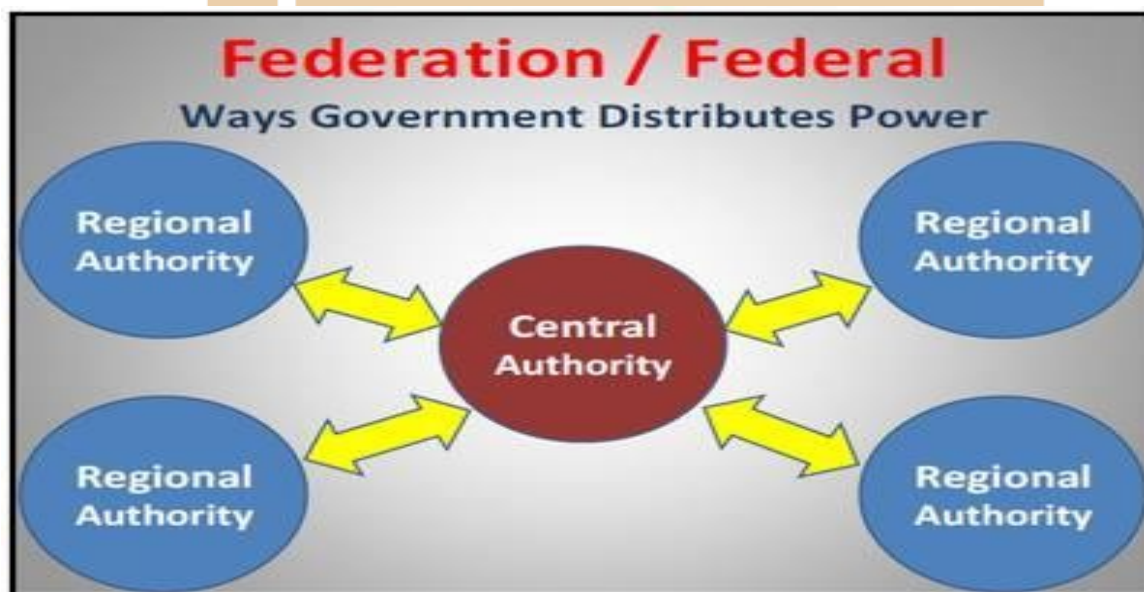
² Bryan A. Garner, Blacks' Law Dictionary, 10th edition, 1995, p.376.

...COMMITTED to building a better future by establishing a socio-economic and political order through a popular and durable national Constitution based on principles of unity, peace, equality, democracy, freedom, social justice and progress;

The study of constitutional history allows us to draw important lessons from the past and apply them to our examination and appraisal of the present as well as projections into the future. It is hoped that considering those things that did not work, we can devise ways of improving the present form and future aspirations and cherishing those that have worked, e.g.

-1962 federal structures (cf 1995)

-1967 excesses of executive power and restrictions on human rights (cf. legislative powers today) **Under the 1967 Constitution, all executive authority was vested in the President, in this case Apollo Milton Obote, to be exercised with the advice and consent of cabinet.** (A federal system of government is one that divides the powers of government between the national (federal) government and state and local governments. The Constitution of the United States established the federal system, also known as federalism.)



(b) Constitutional history also provides the premise upon which we can examine the fashion in which human society is organized, its structures of government, its body of laws and relations between the ruled and rulers of a particular time/period. Entities that are today referred to as Uganda (Kenya, Tanzania etc) are creations of historical processes. (cf UK and US etc). Those processes are a result of internal and external factors motivating the evolution of mankind and society. Whereas Uganda did not exist prior to its colonial creation, the peoples of its present geographical area lived and existed under frameworks of government which continue to be important today (e.g. kingships, chieftaincies (or traditional rulers))

(c) Further, as all laws derive from fundamental law, it is important to examine the manner in which the fundamental law itself derived (and promulgated).

-Kelsenian theory and changes of constitutional order

Uganda v. Commissioner of Prisons, Epxarte Micheal Matovu (1966)1 EA 514 is a decision of HC of Uganda in which Hans Kelsen 'General Theory of Law and State' and the political question doctrine were considered in determining the legal validity of Uganda's 1966 Constitution. The 1966 constitution had come into place following Apollo Milton Obote's *Coup d'etat* under which he seized the powers of government and suspended the 1962 independence constitution, eventually leading to its abolition.

The 'pigeon hole' constitution, clipped the powers of the president and bestowed executive powers on the Prime Minister. The greatest slap to Buganda and the rest of the monarchies in Uganda, would, however be the adoption of the 1967 'republican constitution' that ultimately eliminated kingdoms.

Article 118 (1) of the new law, stated thus: "The institution of King or Ruler of a Kingdom or Constitutional Head of a District, by whatever name called, existing immediately before the commencement of this Constitution under the law then in force, is hereby abolished."

Uganda's Constitutions

- 1962 Independence Constitution;
- 1966 Pigeon Hall Constitution and
- 1967 Republican Constitution
- 1995 Constitution.
- constitution making process (imposition v. consensus.)

(d) We study constitutional history because the concepts and principles that are central to constitutional law (e.g. separation of powers, independence of judiciary, parliamentary democracy, human rights) can only be understood against their origins in the Anglo-American tradition (which also bequeathed the written constitution) and their evolution and application in the history of Uganda as a modern state in its colonial and post independent periods.)



ORIGINS OF THE IDEA OF THE CONSTITUTION-ANGLO-AMERICAN VIS A VIS PRE-COLONIAL AFRICAN SETTING

I. EURO-CENTRIC & AMERICAN ORIGINS-ANTIQUITY TO EIGHTEENTH CENTURY

1. Ancient Greece with its scholars such Aristotle, Socrates and Plato gave us the idea of modern state and government. The polis (city-state) was considered to be of such a size that allowed participation of all citizens in the affairs of government, and thus the concept of 'direct'³ democracy (no longer feasible in modern large states.) Further, in open life of the market square, men of all classes met and talked with one another, and democratic ideas of equality and freedom of assembly and speech found their natural root⁴.
2. Ancient Roman empire gave birth to the idea of citizenship by seeking to define rights and duties that attached to the status of a citizen. This was largely intended to exclude foreigners from active participation in the affairs of government. Further, ancient Rome with its Senate gave to the modern state the institution of formal law making body (legislature) to make law and debate policy.
3. Feudalism during the mediaeval era in Europe was largely a society of noblemen, feudal lords and merchants and craftsmen, and the economies based on land, agriculture and trade. It is a period of absolutism in the power of the noblemen and feudal lords over liberties of the individual labourers and merchant concerns over taxation in trade. On the other hand, the influence of Christianity at the time also saw the conflict between church and state. During this period in England, there were developments to restrain absolutism. One of these developments occurred in the 13th century in 1215

³ **Direct democracy**, also called **pure democracy**, forms of direct participation of citizens in democratic [decision making](#), in contrast to indirect or representative [democracy](#), based on the [sovereignty](#) of the people. This can happen in the form of an assembly [democracy](#) or by [initiative](#) and [referendum](#) with ballot voting, with direct

voting on issues instead of for candidates or parties.

⁴ E. Baker, Greek Political Thought-Plato and His Predecessors, 3 Ed.(1947), 19.



in the form of Magna Carta often recognized as the first constitutional document in Europe. The Magna Carta contained clauses on two key elements namely;

- (i) the right to trial by the jury
- (ii) the writ of habeas corpus

This emerged to restrain the power that the noblemen had to detain and hold people without trial. By introducing the writ, this secured individual liberty. Other innovations of the Magna Carta were;

- (iii) The church was to be free of state (religious freedom)
- (iv) The cities (boroughs) were to enjoy basic liberties (devolution of powers), and
- (v) Merchants were not to be subjected to undue or just taxation.

4. Such ideas continued to permeate Europe until 17th and 18th centuries, a period characterized by outgrowth of **political thought** and **revolution**. One significant instrument was the **Petition of Rights of 1628** which gave further statement to certain constitutional principles:

- (i) There would be no taxation without consent of parliament (In other words, no taxation without representation) and
- (ii) There would be no arbitrary arrests (and damages would be recoverable from the state.)

5. The political thinkers of the time-Locke, Montesquieu, Rosseau-would also shape the relations between government (and its organs) and its subjects (and their rights.) Their political theories would define not only political and constitutional ideas but shaped the events of the period.

Locke's Two Treaties of Government (1682) addressed the nature of society, rights of individuals (in particular property rights) and the ethical imperatives of the government. It is often taken as the premise for the **Whig Revolution** and the **1688 Bill of Rights** that finally secured a constitutional monarchy subject to parliamentary control (at the same time it gave effect to property and economic rights (trade unions etc) and religious freedoms.

Montesquieu's *The Spirit of Laws* deal with separation of powers, a basic concept of modern constitutional law, and whose form has perhaps been evident in America's Constitutional history.

Rousseau's *Social Contract* (1762) posited the idea of the 'General will' of the people as the basis of government (to be couched into the principle of 'sovereignty of the people') and which would form the basis of the **1776 American Declaration of Independence** and the **1791 and 1795 Declarations on the Rights of Man and the Citizen**.

6. America's declaration of Independence from Britain marked the onset of her development a constitutional state. The 1776 Declaration together with Articles of confederation were basically the first American Constitution but the Philadelphia Conference 1787 scrapped the Articles, and a new constitution was proposed for new states. The 1789 Constitution comprised 13 articles, but has since had many amendments (26), each of which represented major struggles in the establishment of democracy in the United States (organs of government; human and civil rights. The French Revolution of 1789 rid France of the absolutism of the monarchy, and by 1795, the Declaration of Rights of Man and Citizen affirmed individual rights and freedoms (e.g. liberty, property, e.t.c) and the peoples' rights popular (e.g. popular sovereignty.)

II. PRE-COLONIAL AFRICAN SOCIETIES-FEATURES OF GOVERNANCE AND SOCIAL STRUCTURES

7. The African setting was one of extreme diversity with structures of government reflecting the different levels of development. There were centralized and decentralized societies, and while some of the societies had developed class based systems, most of them were communalistic. It is the latter feature that defined the forms and structures of governance as well the relationship between individuals. Social values placed the individual within the family, kinship, clan, tribe from which his or her life revolved (land,

marriage, and penalties.) At the simplest of structures of governance was leadership based on age sets and the council of elders and clan systems. The more complex forms of political organization was evident in the centralized societies ruled as kingdoms and chieftaincies (prominent in the interlacustrine region) where kings exercised absolute power in appointments, land distribution, judicial decisions. For example Buganda, Bunyoro, Toro. It was these kingdoms that given the developed state of structures of government, that the colonial power would apply the policy of indirect rule.

8. The pre-colonial societies that occupied geographical entities today known as Uganda, Tanzania and Kenya basically existed as autonomous and semi-autonomous institutions of governance. The process by which these entities were transformed into new states created under colonial rule caused serious destruction of social and political fabric of these entities. This coupled with the introduction of new (alien) forms of government was to have a lasting impact on the structures and substance of government in the colonial and post-colonial periods evident even to present day.

EVOLUTION OF THE CONSTITUTION IN TANZANIA

The scramble and partition of Africa at the dawn of the 19th century by major European powers was settled through 1884 Berlin Conference. However, before the Berlin Conference the powers had already effectively secured spheres of influence, and the conference only served to give effect to demarcation of territories. The major actors in the partition were Britain, France, Germany, Portugal, Belgium and to some extent Spain and Italy.

East Africa was invariably one of the main spheres of influence where hitherto relations that had developed with the Sultanate of Zanzibar and subsequently through the activities of the missionaries, explorers and chartered companies. The early colonial history of the three territories (Uganda, Kenya, Tanganyika) is largely similar in several respects, although there are also certain distinctions. The imposition of colonial rule and authority bore certain features namely;

- Role of chartered companies in the early demarcation of spheres of influence.

-Imposition of colonial rule (powers, phases of administration, mode administration (indirect rule, agreements, legislation; Order in Councils)

-Nature of administration (harsh taxation, forced labour etc)structures like commissioners, governors, local chiefs, executive council, Legco, courts etc.

-Civilizing character of rule (repugnancy doctrine and African social values, missionaries and religion (conflicts), education(schools), health (dispensaries, hospitals), commerce and trade, cash crop economy (banks, loan schemes), local administration.)

-Land question (settlers and alienation, crown land and mailo land/butaka etc.)

-political and constitutional development (instruments and constitutional ideas, political parties, African representation and preparation for self-government.

For the country today referred to as Tanzania, its constitutional began with the establishment of German rule in Mainland Tanganyika and kingdoms of Ruanda-Urundi. German rule was basically established between 1886-1890, and would last until 1914-1916. The mechanism used to establish rule was by use of a chartered company (German East African Company.) Under GEAC rule, life was harsh and administration was ruthlessly effected. The labour policy was based on force and land was alienated from the local peoples as the basic economic being of the territory moved from traditional subsistence farming to commercial plantations. Because of the harshness of company administration, the German government stepped in directly and established its own overrule. The colonial administration was represented by a Governor assisted by an advisory council and whose main role was making laws and financial appropriations.

The territory was divided into 21 districts witheach of them under a District Commissioner. The DCs were assisted by Akidas who had control and responsibility for maintenance of law and order and resolution of cases and disputes (magisterial powers under pockets of villages.) The Akidas were likewise assisted by Jumbes who were basically the village headmen and they performed the same functions (this represents the German version of indirect rule.) Direct rule was imposed on all districts except the district of Bukoba, which

together with Ruanda and Urundi, more less retained their pre-colonial methods of authority and a system of indirect rule despite German efforts to crush this.

When the German rule ended in Tanganyika soon after the hostilities started in 1914, part of the territory was placed under military administration by Hores Byatt. In 1917, he was appointed administrator of the liberated parts of the territory, and by 1919 he took over the whole of the territory. Subsequently, Tanganyika was placed under a mandate with Great Britain and the mandatory power under which it remained until independence in 1961. British rule was formalized in 1920 through the **Tanganyika Order in Council, 1920** (legislation by the Queen.)

- (i) What was the impact and influence of the period of German rule on the evolution of the constitutional state (did it make any difference?
- (ii) How did the transition from German to British Rule affect the existence and evolution of constitutional state in Tanzania?
- (iii) Of what significance were these developments after 1919 to the wider issue of political and constitutional developments in East Africa Region?

Order in Councils and 'repugnancy doctrine'

Gwao bin Kilimo v. Kisunda bin Ifuti (1938) TLR 403 (Tanganyika)

EVOLUTION OF CONSTITUTIONAL STATE IN UGANDA

I. GENERAL INTRODUCTION

Uganda has many similarities with the history that characterized the birth of Tanzania and Kenya. The source of the Nile and economic-strategic interests had already ignited colonial rivalry over East Africa. But the rivalry in Uganda probably was fostered initially in the character of territory, particularly in Buganda. The Protestant and catholic missionary groups were engaged in a religious rivalry which in underlying tones was political rivalry given the backing powers –Britain and France.

It is pertinent to say that from the outset of the existence of Uganda as a state, politics and religion was inter-related as early through the missionary influence in Uganda. The religious group that emerged dominant was the protestant and it would also become the dominant force in the political evolution of the colonial (and post-colonial) state in Uganda. The religious factor would permeate the social life (schools, hospitals e.t.c) and political parties of Uganda's history even up to the present day. However, the Arab influence gave birth to the minority religion of Islam, and which in the Amin era gave that political period the Moslem dominant role. The struggle among religions in Uganda's political and constitutional development has thus been a salient feature of our history.

The religious factor was in its early form prominent in the seeking of favours of the Kabaka by Missionary groups in Buganda. Eventually after the resolution of the religious conflicts in Buganda after a brief period of administration by the IBEACo and the wars of resistance (especially in Kabalega's Bunyoro and Mwanga's Buganda had been subdued. The British flag was erected for the first time on 1st April 1893at Fort Lugard (Old Kampala Hill.) The protectorate was declared a year later, and between 1894-1900, the British consolidated their administration and overrule over the protectorate. In 1900, the British entered into an agreement with Buganda (ruling faction) whose significance was to gain access to most of our colonial and post-independence period both in political and constitutional terms.

(a) First of its kind in Uganda (subsequently led to other agreements with other kingdom areas –Toro (1900), Ankole (1901, 1941), Bunyoro (1933), 1937).

(b) Introduced indirect rule as a policy of colonial rule (Kabaka in effect relegated to a puppet status. (cf Art.6)

(c) Gave Buganda privileged status over other parts of the protectorate and improved socio-economic position of Buganda

(d) Confirmed the boundaries of Buganda (territory)

(e) Introduced the first instances of orderly political governance (thus it is often considered first constitutional instrument in Uganda's history.

II. 1900 BUGANDA AGREEMENT-ITS PROVISIONS AND SIGNIFICANCE

The Buganda agreement was signed on the 10th of March 1900 between Sir Harry Johnstone (who was His Majesty's Special Commissioner and Commissioner –in Chief of the Protectorate) and the regements (chiefs) Sir Apollo Kaggwa, Stanslus Mugwanya and Nuwa Mbogo (on behalf of the infant King Chwa II.)

The agreement had 22 clauses the majority of which were to be of profound significance for Buganda in particular and the Protectorate of Uganda as a whole.

1. Article 1 of the Agreement demarcated the boundaries and laid down the territory of the kingdom. In so doing it established the geographical, political, and administrative jurisdiction of the kingdom. Together with article 9 which set out the 20 administrative units (counties) of Buganda. The agreement confirmed the Kingdom as the primary entry point for the control of the rest of the protectorate. The demarcation of the territory of the Kingdom would be of great significance.

(a) It placed a restraint upon the expansionist tendencies of Buganda kingdom as its territory was now clearly demarcated and defined

(b) It defined the administrative (taxes) judicial courts and political-military jurisdiction of the kingdom.

(c) Within the boundary demarcation was the territory which belonged to Bunyoro give to Buganda for her assistance in the defeat (and pacification) Bunyoro. This territory constituting 7 of the 20 counties would later be dubbed the 'lost counties', and remained a contentious issue throughout the political and constitutional development of the protectorate (and the immediate independent state.)

-memoranda by Bunyoro during the conclusion of 1933 and 1937 Agreements

-debate and disagreement over matter during the 1961 and 1962 constitutional conferences (Marlborough & Lancaster) resulting in appointment of the Mouson Commission.

Joseph Kazaraine v. The Lukiiko [1963] EA 472.

-Referendum on the lost counties in 1964.

Kabaka's Government & Anor v. Attorney General of Uganda & Another Privy Council App. No.56 of 1964 challenge of validity of referendum.

-Constitution of Uganda (Third Amendment) Act No. 36 of 1964.

2. Article 2 provided that the Kabaka and chiefs agreed to forfeit collection of tribute from neighboring provinces in favour of His Majesty's government. In effect, the agreement affirmed the process of transfer of economic power and control into the hands of colonial government as an underlying essential objective of the colonial state. (cf art 4 merger of revenues, article 6 overrule.)

3. Article 3 stipulated that Buganda would rank as a province of equal standing with any of the other provinces in the protectorate (to which may be divided)⁵. The intention of this article was to prevent Buganda from claiming any special/privileged status within the protectorate. While this was the letter of the

⁵ The protectorate was later divided into five provinces under the 1902 Order -in-Council-Nile, Rudolf, Central, Western and Buganda. In 1926, the Rudolf Province became part of modern day Kenya Colony and Protectorate (boundaries Order-in-Council, 1926 and Proclamation (under Article 6) Uganda Order in council 1926.

agreement, the spirit of it was to in fact give Buganda an enhanced position, which would eventually lead to the struggles (conflicts) between Buganda and the rest of Uganda which has the history of the protectorate in the last ten years. From 1953, Buganda became involved in struggles to enhance its position, defend her interests or even assert its independence. E.g.

- opposition to idea of a unitary State (along parliamentary lines) and that of the East African Confederation

- 1960 memorandum/petition to Her Majesty's Government seeking independence (for the kingdom).

- boycott of 1958 and 1961 elections on grounds that held on basis of 'direct elections' rather than 'indirect' elections envisaged under the 1955 Agreement.

- demands for a 'federal status' and 'indirect elections' during the Lancaster and Marlborough conferences.

4. Article 4 stipulated that revenue of Buganda Kingdom collected by the colonial administration would be merged with the general revenue of the protectorate. Although no implications of Article 4 during the colonial period, the impact of such provision would be more evident under the 1962 constitution which sparked off the conflict between the kingdom's government and the central government. (cf art 2 tribute, art 6 overrule).

5. Article 5 stipulated that the laws made for the general governance of the protectorate were applicable to Buganda except where they are in conflict with the terms of the agreement, in which case the terms of the agreement were to prevail. In effect, the protectorate laws would be null and void to the extent of the conflict. The significance of this article lies in the fact that it laid down the law applicable as regards legitimacy of protectorate laws and status of the agreement provisions. It was largely designed to appease the kingdom, and would eventually turn out to be a blind and empty gesture as it did not stop the colonial administration overriding terms of agreement (and several cases would demonstrate this)(cf **R v. Besweri Kiwanuka (1937; Mukwaba & Others v. Mukubira & Ors (1954);** However, **Nasaniri Kibuuka v. Bertie Smith (1908.)** In

essence, the colonialists started the practice that has been copied time and again of treating constitutional arrangements as mere strips of paper not worth the ink in which it is written.

6. Article 6 stipulated that His Majesty's Government would recognize the Kabaka as the native ruler of his people and so give him protection so long as the kabaka, chiefs and people of Buganda will conform to the laws (and overrule) of his Majesty. This article is the crux of the whole agreement as it covers the essential elements of the phenomenon of colonial rule-

- (i) indirect rule through the Kabaka as the 'native' ruler of his people and
- (ii) Subordination to authority and control(overrule) of colonial administration. At the same time it spelled out consequences of failure to co-operate as being the withdrawal of protection as would happen in 1953. (cf Mukabwa v. Mukubira (1954).

The other significances of Article 6 include;

- (a) It attempted to address the leadership wrangles that had been a major issue in the run-up to colonial rule imposition, by providing that the Lukiiko would determine who should succeed upon the death of Kabaka, although ultimately the colonial government had the right to veto who would eventually become the kabaka (attempts to get the Lukiiko to appoint a successor in 1953 were to be futile.)
- (b) It defined the jurisdiction of the courts of the Kabaka's kingdom stipulating that this would cover all so called 'natives'(Natives Authority Ordinance; **Nasanairi Kibuuka v. Bertie Smith (1908)** but imitations were placed on the punishments to be issued by the Kabaka, showing that the colonial government remained the supreme authority.
- (c) It spelt out aspects of remuneration, providing that the Kabaka would be guaranteed yearly allowance of BP1500 also to be paid BP650 for household needs during years of minority and regiments would get an annual salary of BP 400 (the majority age was at 18 years.)

(d) It stipulated that the Kabaka would be addressed as 'His Highness and receive a 9 gun salute during ceremonial functions while the Queen got 21 gun salute. (cf post 1962 squabbles as to salute and TV appearances.)

It is clear from the above aspects that overall authority was vested in His Majesty's government and that the Kabaka ruled at its pleasure.

7. Article 7 provided that the Namasole (mother of the King) was to receive a lifetime allowance of BP 50 a year. However, this sum was designed during the lifetime of the existing Namasole, and was not necessarily to continue for others.

8. Article 8 stipulated that in cases of a mixed nature (ie. Cases involving natives and non-natives) were subject to British Courts. (cf article 6 overrule, and 11 (Lukiiko & property of Europeans)

9. Article 9, as already noted, divided Buganda into 20 administrative units(counties) each of which was to be headed by a chief selected by the Kabaka's government but approved by the colonial administration. The chiefs were to receive BP 200 and carry out functions such as;

(a) administering of justice

(b) assessment and collection of taxes

(c) up keep of roads and

(d) general supervision of native affairs.

With respect to all other matters, except the collection of taxes, the chief was to report to the Kabaka's government. With regard to the taxes, the chief was responsible to the colonial administration, and could call on the kabaka to dismiss him, and replacement with another chief capable of carrying out those duties better. (cf taxes and economic power, article 12, forced labour (Kasanvu)& roads up keep art 14, vis a vis autocratic powers of chiefs on law and order-Native Authorities Ordinance 1919 etc.

10. Article 10 stipulated that the Kabaka would be allowed 3 minister/native officers of state.

(a) Prime Minister (Katikiro)

(b) Chief Justice

(c) Treasurer, to be approved by the colonial administration. These 3 were to receive BP 300 as payment for services rendered (except during period of regency-BP 400.) The native officers would act as conduit for relations between the Kabaka and the colonial administration. The PM was to be ex officio member and president of the Lukiiko (with Chief Justice as vice President.)

11. Article 11 constituted the Lukiiko as the native legislative body (council) of the kingdom. This comprised, apart from the three ministers, each county chief who were to be ex officio members, and six other persons appointed by the Kabaka. The functions of the Lukiiko were:

(a) discussion of all matters relating to administration of the kingdom

(b) act in certain instances as a Court of Appeal on matters involving property (>BP 5) and sentences of imprisonment (> one week)(revision) (cf < BP 100 and sentence of imprisonment < 5 years or death (referral to Kabaka) (cf Uganda Agreement, 1905 The Lukiiko had no power over the property belonging to Europeans.

Membership of the Lukiiko was confined to the natives (citizens) of Buganda. And in selecting representatives, the Kabaka was under a duty not to take into account the religious affiliation of any person selected, with the provision allowing his use of his judgment and advise of the colonial administrator. (cf fair representation of all recognized expressions of religious belief. (cf Mukabwa v. Mukubira (1954) compositions and nominations to Lukiiko.

12. Article 12 provided for taxation as contribution to the general running of the protectorate. It established a system of taxation with the following taxes:

(a) Hut tax (3 rupees, 4 shs per year) imposed on every house used as dwelling place and

(b) gun tax (3 rupees, 4 shs per year) to be paid by any person who possessed/used a gun. Under the provision, the Kabaka was granted 50 gun licences free for 50 men in his household. The Namasole was to get 10 and the minister 20, county chiefs 10, and other members of Lukiiko 1. There were no other taxes to be imposed except with agreement of Kabaka guided by majority votes of the Lukiiko.

13. Article 13 dealt with the question of military service. It recognized the Kabaka's pre-existing right to conscript able bodied men for military service in defence of the country should the need arise, save the right would now be exercised under the advice of the colonial administration.

14. Article 14 provided for maintenance of roads. It would give the county chiefs the power to raise labour (Kasanvu) and force able bodied men to work on repair of the roads.

15. Article 15 provided for the distribution of land, and was to be a critical element in the subsequent history of Buganda (and continues even to date) The land was redistributed as:

(a) 1500 sq miles of forest fall under control of colonial administration

(b) 9000 sq miles of wasteland vested in HM Government and under control of colonial administration (which became crown land(art.18).

(c) 350 sq miles of plantations and other private property of the Kabaka

(d) 16 sq miles for the Namasole

(e) 10 sq miles of plantations and other private property to Mwanga's Mother

(f) 32 sq miles for the 4 princes (each 8 sq miles)

(g) 90 sq miles for princesses, sisters and relations of the Kabaka

(h) 320 sq miles for county chiefs –a private property totaling 160 sq miles (each 8 sq miles) and official estates of counties similarly 160.

(i) 96 sq miles for the Regents –as private property totaling 48 (each 16 sq miles) and official property attached to office similarly 48.

(j) 24 sq miles for Mbogo as a leader of Mohammedans (cf Article 19)

(k) 20 sq miles for Kamswaga as chief of Koki

(l) 8000 miles for 1000 chiefs and private land owners (mostly estates already in possession) each computed at 8 sq miles

(m) 92 sq miles for three missionary societies

(n) 50 sq miles as land taken over by colonial government for its stations.

Because of the distribution of land in miles, this came to be known as mailo land, but it is basically freehold. This provision would have political, socio-economic and cultural impact (and struggles) in the history of Buganda and Uganda viz;

(a) Dispossession of bataka (as clan leaders) of clan burial land (butaka) (ultimately demise of communal ownership ownership of land: A case in point is Mwenge v. Miggade (1933) - later Bataka uprisings.

(b) Mailo land as 'freehold' land placed emphasis upon the individual ownership as land became the basic unit of economic development. Later Busullu and Envujjo Laws 1928.

(c) Land Act 1998 (and 9000 sq miles.

16. Article 16 and 17 dealt with promulgation of forest regulations and rights over minerals found on private estates (control over natural resources)

17. Article 18 dealt with trust compensation for the 10,500 sq miles taken as crown land.

18. Article 20 stipulated a penalty in the event of failure by the people of Buganda to raise and pay the minimum amount of taxation due. Upon failure to do so, the colonial government would consider itself not bound. However, if there was an excess the Kabaka and chiefs could appeal to the colonial

government for a raise in proportion to the excess (but this would lie at the discretion of Her Majesty).

19. Though the agreement was written in both English and Luganda, the English version was the one to be used in interpreting its terms (article 22).

Concluding Remarks

- (i) **The agreement reflected a high degree of infusion of powers vested in the Kabaka, his minister, county chiefs and British Crown. There was in other words a blatant disregard of the principles of separation of powers.**
- (ii) **Where there are several references to the people of Buganda, these were not participants in the agreement (making of agreement, choice in officers of kingdom administration. The agreement in fact reflected very little regard for the independence and autonomy of the peoples of Buganda Yowasi Pailo & Orthers (1920)**
- (iii) **The beneficiaries of the agreement was small clique of chiefs and private land owners, and in creating the mailo land system, disposed many Baganda which has continued to date.**
- (iv) **While the agreement represented the first step towards constitutional government (ie government by rules). It also marked the first step in undermining the idea of constitution.**

UGANDA ORDER IN COUNCIL, 1902

The 1902 O-I-C formalized colonial rule in Uganda and was the fundamental law of Uganda Protectorate. The O-I-C was an exercise of power granted to Her Majesty's Government under foreign territories (colonies). The 1902 O-I-C dealt with several matters of constitutional significance ranging from provincial and administrative divisions, structures of governance, administration of justice and maintenance of law and order to the applicable laws. As the fundamental law of the protectorate, the OIC dealt with the following;

1. Section defined the territorial boundaries and provincial divisions of the protectorate. The divisions originally established by the OIC were 5namely;
 - (i) Central Province (districts of Elgon, Karamoja, Busoga, Bukedi and Labor
 - (ii) Rudolf Province (districts of Turkwel, Turkana and Dabossa)
 - (iii) Nile Province (Districts of Doddinga, Bar and Shuli)
 - (iv) Western Province (districts of Bunyoro, Toro, and Ankole
 - (v) Kingdom of Buganda and Islands pertaining thereto.
2. Secondly, sections 4-5, provided for the office of Commissioner assisted by the deputy commissioner who was to take overall control of the administration of protectorate. He was the chief representative of her Majesty's Government (Harry Johnston). The Commissioner would later became the Governor under the 1902 OIC.
3. Section 7, the OIC vested the crown lands in the Commissioner. Under section 1 it defined crown lands to mean all public land that hhad been subjected to the control of Her Majesty's Government by virtue of any treaty, convention, or agreement(eg Buganda, Ankole, Toro) and all land that might have been acquired for public service. Thus the control of the greater part of land in Uganda was vested in the colonial government.
4. Sections 8-10 the OIC empowered the Commissioner to make laws and raise revenue subject only to special instructions of the State. The Commissioner was under a duty to make laws for peace, order and good governance of all

persons in Uganda. By this power the Commissioner was able to establish a regime of laws governing all aspects of political, social and economic life.

5. Section 15(1), OIC established a system of judicial power comprising courts of justice , in particular the High Court with unlimited civil and criminal jurisdiction over all cases and all persons in Uganda. This court was called Her Majesty's Court of Uganda. The OIC conferred upon the commissioner the power to appoint and dismiss from High Court, which power was vested in Her Majesty's Government. (appointment and dismissal).
6. Under section 15 (2), the OIC contained a 'reception' clause which empowered the Commissioner to apply any law of the UK (or any other protectorate/colony of the UK) in Uganda. This is how the Evidence Act Cap.43, (cf R.v. Amkeyo , Contract Act Cap. 75, Companies Act Cap. 85, Penal Code Act Cap. 106 from India came to Uganda. The reception date is of legislation as at 11 August 1902.
7. Section 20 of the O-I-C contained a repugnancy clause. Section 20(a) of the O-I-C provided that:

'in all cases, civil and criminal, to which the natives are parties, every court (a) shall be guided by native law so far as it is applicable and is not repugnant to justice and morality or inconsistent with any order in council or any regulation or rule made under any order in council or ordinance...'

The clause recognized native laws and customs subject only to whether they were in conformity with rules of good conscience, natural justice and morality. It was intended to remove those native laws and customs that were considered backward and uncivilized. The major problem was that the negative aspects were as perceived in the colonial power. In other words, it was a subjective test that was applied according to the morals and standards of an English person. The problem with the subjectivity is that many customs which were central to the social fabric of native communities in the British colonies were rendered void by the stroke of an English Man's pen.

- (i) An 'instance of an implied application of the clause was the Kenyan case of R v. Amkeyo (1914) KLR 14, where the question was whether the relationship between the accused and a certain woman in native

custom was one of 'marriage' in the strictest sense/meaning of the word. Chief Justice Hamilton considered the features of the relationship as follows:

- the woman was not a free contracting person in the relationship
- the woman was treated more in the form of a 'chattel'
- the relationship was potentially polygamous.

The Chief Justice concluded that the relationship could at worst be seen as one of 'wife purchase' and did not fit within the idea of 'marriage' as generally understood among civilized people's thus the alleged custom was implicitly repugnant to good conscience and morality.

(ii) The other case on repugnancy clause from Tanzania was *Gwao bin Kilimo v. Kisunda bin Ifuti* (1938) 1 TLR 403. In this case a government tax clerk named Mange, in the ordinary course of his duty collected shs.10/- from the respondent for poll tax, issued him with a false tax ticket, and converted the money to his personal use. Mange was tried in a criminal court and duly punished. The respondent then sued him in a civil court for the return of shs.10/- and obtained a decree in his favour. In execution of that decree the respondent caused to be attached by court process two heads of cattle which was not property of the judgment debtor, Mange, but of his father, Gwao, the applicant. Gwao unsuccessfully objected to the attachment in a lower court, and appealed to the High Court (to revise the decision of the lower court and appealed to the High Court and order his cattle to be returned to him. The issues before the High Court was whether:

- (a) There was an authentic Turu native law which allows the seizure of a father's property in compensation for wrong done by a son
and
- (b) This native law was one, by virtue of s.24 of the 1920 Tanganyika O-I-C, a British court may and should be guided.

The Tanganyika High Court held that although there was a custom to that effect, it was not of universal application and no baraza chiefs had ever enforced this custom. Judge Wilson referred to art 24 of the O-I-C to reject such custom.

(iii) Another case in Uganda that interprets this clause is *Mwenge v. Migade* (1933) ULR 97 where the question related to the existence and continuation of customary tenure (butaka) in Buganda (and of the inalienability of such butaka in ancient customs of Buganda). Judge Gray considered provisions of the 1900 Buganda Agreement and legislation passed by the Buganda Government (1908 Land Law) to hold that the practice showed that butaka tenure no longer existed (repugnancy of continued existence of custom).⁶

Notably, section 20 (b) requires the courts in disputes involving natives to administer substantive justice without undue regard to technicalities. In the case of *R v. Yowasi K. Palio & 2 Ors* (1922) ULR 98, where the issue arose with regard to proceedings before the Lukiiko court. Given that in Buganda, the procedure involves a complainant making his own case and in this case the Kabaka was the complainant in respect of sedition against him (and he does not appear before his own courts), the Lukiiko court acted as a prosecutor, jury and judge. On appeal, the High Court admitted that the procedures before Buganda (native) courts should not be the same as those before the British courts and as long as substantial justice is achieved, there was no good ground for overturning the decision of the native court.

8. Sections 24-25 of the O-I-C provided for the Commissioner to order the removal or deportation of an undesirable person from the protectorate in order to preserve peace, order and good government. This was a power that was used on several occasions in order to deal with anti-colonial sentiments in the protectorate, including prominently, the bataka agitators. In order to give effect to this power, the commissioner enacted the Removal of Undesirable Natives Ordinance, 1907

⁶ It is to be noted that the repugnancy clause survived into the post-colonial period in form of the Judicature Acts of 1962 and 1967 and the Judicature Statute of 1996. See: the Case of *Best Kemigisha v. Mable Komuntale* (1998). The question is whether the validity of customs should be determined against the test of repugnancy (Judicature Statute 1996) or test of inconsistency with the Constitution (1995 Constitution).

and the deportation Ordinance, 1908⁷. The removal and deportation laws did not allow for appeal against or review of the order Commissioner.

Implications of the 1902 O-I-C in Terms of Constitutionalism

The O-I-C is very important not only because it is the first legal instrument to establish a framework for the governance of the whole of the protectorate, but also because of the basic elements it put in place. Many of those elements influenced politics and government throughout the colonial period and the post- independence period. The legacy of the O-I-C is very significant. At the same time the O-I-C represented a negation of the idea of constitutionalism, even those ideas which had developed in the UK at the time e.g

- (a) it did not respect the doctrine of separation of powers-the executive officers of government exercised (both legislative and judicial powers
- (b) it did not recognize the rule of law by applying double standards and open discrimination between the indigenous people and the Europeans (non-natives.)

The O-I-C gave much prominence to state power, and did not define the rights of the individual (no mention of human rights in the O-I-C.) It was also highly coercive as it did not allow for the alteration of state power especially office bearers up to 1962.

Probably the question that has been significant in Uganda's constitutional history has been the relationship (primacy and supremacy) of the O-I-C and the Kingdom Agreements. We noted, in respect of the Buganda Agreement, that the agreement would have such primacy over other laws of the protectorate.

(i) *Nasanairi Kibuuka v. Bertie Smith* (1908) where the issue related to the legislative powers served to the kingdom under Buganda Agreement, vis a vis the 1902 O-I-C. Carter, J., held that the Crown (HMG) could not acquire powers in Buganda which had not been granted by the 1900 Agreement:

⁷ The Deportation Ordinance was amended four times between 1908 and 1956 (latter introduced the element of judicial inquiry: *Binaisa* (1959) EA 997. However, it would not be introduced until 1966 that deportation law was successfully challenged and declared unconstitutional: *Ibingira & Ors v. Uganda* [1966] EA 305.

‘As I understand the Agreement, it is to be regarded as taking away any right or power of the Kabaka except by its express provisions, therefore whatever powers were his before remain with him except as far as they are expressly taken away or limited. A sovereign state has undoubtedly the power of legislating and there is no agreement prior to the 1900 Agreement, so far as I am aware which takes away this right.’

Thus, because of the agreement, Buganda was at that time regarded as retaining still a measure of her original sovereignty which not even the O-I-C issued could not take away from her.

(ii) In *Katonzi v. Kahizi* (1907) involved a conflict between the terms of the 1901 Ankole Agreement which reserved certain judicial powers in their High Court claimed to give it full jurisdiction within the territory. The High Court ruled that the O-I-C could not alter the existing agreements. This judgment was supported by secretary for State for the colonies who wrote that:

‘The validity of the O-I-C 1902 in so far as it nullifies this reservation is consequently open to the question...in these circumstances, I am advised that the Uganda O-I-C had jurisdiction over Buganda. The Buganda Agreement had not explicitly stated whether or not this would be the case (only that chiefs powers would include administering justice in the Kabaka Courts. As in the *Katonzi* case, the issue was referred to secretary for State for the Colonies who would reply asserting that the 1902 O-I-C was superior to the Agreement.

The High Court held that by the 1902 O-I-C, Her Majesty’s Government had made manifest the extent of her jurisdiction in Uganda. Such manifestation was to be regarded as an ‘act of state’ (as power exercised which was unchallengeable in any British Courts.

(iv) In *Mukabwa & Ors v. Mukubira* (1954), the nomination of 4persons to the Buganda Lukiiko was challenged since the Kabaka had been deported to exile in UK. The case was a disguised challenge of the legality of the deportation under the terms of the Agreement. The court took that the agreement had not created contractual relations to which HMG was bound. In other words, the people of

Buganda could not invoke the terms of the agreement as a treaty creating rights and obligations which could be binding on Her Majesty's Government before her courts.

The case sealed the debate about the superiority of the two instruments with agreement construed in the interest and political convenience of colonial government. Their significance upon the politics and government in Uganda is the legacy they provided of disregard of constitutional instruments/ideas in the subsequent history.

Please read: *Ndibarema v. Enganzi of Ankole* (1960)

Katikiro of Buganda v. AG (1959)

IMPOSITION & OPERATION OF COLONIAL RULE/ADMINISTRATION 1902-1920

Once the Buganda Agreement had been concluded and the 1902 O-I-C promulgated the colonial government spent the next two decades consolidating its power and rule. Agreements similar to Buganda Agreement had been signed in between two instruments (Toro 26/6/1900 and Ankole- 25/10/1901.)

The administrative structures set up under the kingdom agreements were essentially similar to those in Buganda i.e. counties, chiefs, native courts and councils, officers of state.

Outside the kingdom areas, in addition to the 1902 O-I-C the main instrument for the consolidation of colonial rule was the Native Authority Ordinance of 1919 which made provision for the powers and duties of chiefs for the enforcement of authority in their areas of jurisdiction. The 1919 Ordinance:-

(i) Defined the powers, duties, and privileges of chiefs which were extremely extensive. The chief was a complete autocrat endowed with powers of an executive (administration, production of food, supply of labour, tax collection), legislative (making bye-laws and regulations) and judicial (administration of justice) nature

(maintenance of order, prevention of crime, arrest, seizure and detention of people e.t.c. sections 3, 5.

(ii) Subjected the chiefs to the overall control and supervision of the colonial District Commissioner. The ultimate authority was the colonial government. The District Commissioners had the power to hire and fire chiefs at will and were absolute rulers in their own right (concerning insubordination, neglect of office than abuse of chiefly powers affecting the natives. (section 13.

(iii) Reinforced the office of chiefs with coercive instruments designed to ensure loyalty, payment of taxes, and growth of cash crops on part of the subjects. In this respect, the colonial military and police apparatus paid little regard to the protection of people. The role of these traditional instruments was (a) army to prevent foreign aggression and (b) police to protect citizens' lives and property were not used in this regard, and instead designed to suppress the natives.

The basic unit of local administration was divided along ethnic lines as part of the (conscious) policy of divide and rule. Indeed efforts by different ethnic communities to create nationalistic (inter-tribal) contacts was minimized by the colonial government. Outside the kingdoms, the mode of pacification often took a sub-imperialist mode the most prominent in the person of Semei Kakungulu. While a favourite mode of colonial penetration, it served to ethnicise and polarize tense relations between Buganda and these other communities.

Over the two decades of early colonial rule, mechanisms of government and administration had been set up virtually throughout the protectorate. Those mechanisms duplicated the pattern which had been laid in the Buganda Agreement and the 1902 O-I-C. Thus where so many principles of constitutionalism were negated in these early instruments, the same would be the case in the legislation passed during this period to govern the protectorate.

The legacy of this process was to create omnipotent chiefs whose powers permeated virtually all aspects of social lives of their native subjects. This process of localization of colonial autocracy had even more profound effect on the structures of government and evolution of the constitutional state (important of

ideas at central government but the more so at the local level-not only at central (national) but also the more so at the local level/ grass-root (NRM). For the two decades, the governor was an absolute at the central level, paralleled by the District Commissioner at the district level and the chief at the local/ground level. It has been argued that it would have been impossible for the British to have established and consolidated itself as a colonial power and to have recognized the basic rights and freedoms to have survived as a power in Uganda.

Thus despite the reforms that took place from 1920 onwards, the early mundus operandi set in place by the colonial system of government left a marked impact on the evolution of the constitutional state in Uganda and that impact was much more profoundly felt at the local level of government (indeed it took over 8 years to achieve what could be described as a fundamental reform in the operation of local government continued to exert its influence over the future ways in which government was approached in Uganda. To date, we continue to be haunted by the legacy of autocratic government set in place during colonial era.

THE UGANDA ORDER IN COUNCIL 1920

Between 1900 and 1920, the Commissioner's powers were absolute and was largely a period of complete autocracy. The 1920 O-I-C introduced significant developments especially as regards the organs of government. The preamble stated that;

‘Where it is expedite that there should be an Executive Council and a Legislative Council, and that the Legislative Council should have power to make ordinances for peace, order and good governance of all persons and that the same council should exercise such powers as hereto before have been exercised by the commissioner.

The main changes introduced by the 1902 O-I-C were:-

- (i) It formally changed the name of the head of the protectorate from commissioner to Governor (title would remain until 1962.)
- (ii) It created an Executive Council consisting of such members as Her Majesty's Government would decide to appoint. The members could be suspended by the

Governor upon sufficient cause being shown. Upon suspension of such member, the Governor was to inform His Majesty's Government who had the option either to confirm or reject the suspension (if confirmed, position became vacant.) The executive council would subsequently become the formal executive organ of the colonial government and its cabinet.⁸

(iii) It established a Legislative Council (LegCo.) The LegCo. Was made up of the Governor and not less than 2 other persons appointed by (and who served at the pleasure of HMG. The LegCo. Was for the very first time separate organ of government, although its inclusion of members of the Executive Council in its composition militated against the principle of separation of powers. The powers of the LegCo. Were to:-

- (a) make laws
- (b) constitute the court and
- (c) general oversight of administration of justice and maintenance of peace, order and good government.

The LegCo. was chaired by the Governor who had a veto (negating power) on all matters legislated on by the Council. An overall power to respect or reject the veto vested only in Her Majesty's Government. Any bills passed on to Her Majesty's Government. Any bills passed by the LegCo. had to be transmitted to the Governor for assent (consent). Where he refused to assent to the bill, it was then passed on to Her Majesty's Government with the final decision as to whether or not it should be assented to and become law.

(iv) The judicial system put in place under the 1902 O-I-C remained intact.⁹

(v) The O-I-C is significant in Uganda's constitutional history for a number of reasons

- (a) For the very first time, the basic features of a typical state are seen to take shape. There was less clear demarcation of the three arms of government (even

⁸ The officers in the Cabinet included inter alia Director of Finance, Director of Medical Services, Director of Agriculture, Attorney General etc.

⁹ The East African Court was established a year later by the East African Court of Appeal Order-I-Council.

though the separateness and independence was defeated compared to the fused state powers under the 1902 O-I-C.

(b) it was however still clear that it was designed to retain and reinforce colonial power and rule, given the closer relation of the powers of government was still considerate such that there had been not that much of transition in the distribution of power, i.e. it confirmed the executive authority of government while introducing a few cosmetic reforms. A critical look at the membership of the organs created under the O-I-C reveals this. The official members of the LegCo. were largely drawn from the public service (executive) who were the majority with the unofficial members were a minority (with the Government power of veto, these numbers were rendered irrelevant.

(c) There were other aspects in the O-I-C which were delimiting-first, only the Governor could call for a meeting and the quorum of both sides (EXCo. and LegCo.) was three (3) (Governor & 2 ors), Second, the Governor had the power to operate independently of both Executive and Legislative Councils (no checks and balances on top of the fusion of powers.) In effect, while the number of people (organs) involved in administration of government, powers of Governor remained largely intact.

(d) the arrangements continued to exclude both Africans and Asians with the ExCo. and LegCo. manned exclusively by Europeans.

Developments in the Protectorate from 1920-1930s-Asians Question and the Bataka-Peasantry Grievances.

(a) The Asian Question-Political Representation and Economic Interests

Between 1920 and 1930s, demands for political participation in the protectorate government would be made not by the native Africans, but the other non- Europeans communities, the Asianse. The Indians had come to East Africa at the close of the 19th century mainly to construct the Uganda Railway, after which most settled in Kenya and Uganda carrying out trade and commerce as their main

occupation. By the 1920s, the Asian Community was significant in numbers, and they therefore argued for a political and economic stake in the protectorate. The Asian community pressurized the colonial government for representation in the LegCo. This would bear fruit with the nomination in the 1926 when the first Indian representative Chinubhai Jethabai Amin to the LegCo. In effect, the first non-European representative in the LegCo. was Asian rather than African. The Asian question has for long time affected politics and government in Uganda. Further, discriminatory and racist laws and policies led to the dominance of trade and commerce by the Asian Community. This was achieved through laws which excluded the Africans from trading within a certain radius of an urban center thus the Trading Ordinance of 1938 prohibited natives from trading within a ten mile radius of an urban center. (cf with trading (amendment Ordinance 35/1950.) reduced limitation on native trading to one mile distance from municipal boundary. Similarly, Africans were prohibited from ginning cotton and processing coffee and engaging in export-import trade.

Thus the foundation of the economy of the protectorate was in the hands of the Asians. This led to friction and antagonism against the Indian community such that whenever there was an uprising and riots, the Indian community were a prominent target for anti-colonial sentiments.

The Asians did take advantage of discriminatory laws and policies and consolidated their economic position, and just like the Europeans looked only to their affairs. In analyzing this issue, an Oxford Indian scholar, Ramkrishna Murkerjee, Problem of Uganda (1956) made this observation of the relations between Africans and Asians and Europeans:

'In Uganda, the Indian community grew as an off-shoot of a poisonous tree because the tree does need further sustenance from the off-shoot and the soil has hated it from the start. Therefore when the present economic growth of the Indians in this country is over, nobody will lament their disappearance. The tragedy will however remain that they were forced from the sea by the connivance of those who so clearly effected the anger of the people on the scapegoat.'

The Indian community has featured as prominent factor in Uganda's political and economic life both in its colonial and independent periods.

The triangle of European Indian African relations often swathe Indians identified as part of the repressive colonial rule. Most of the anti-colonial sentiments would be expressed against them, and one can say that the 1972 expulsion represented the culmination of the African dissatisfaction with Indian community.

b) The Bataka/Peasantry Grievances over Land Provisions under the 1900 Agreement

The protectorate underwent significant developments between 1900 and 1920 particularly in Buganda. During this period in Buganda, the power of the mailo land beneficiaries was on the increase and this was set against the dissatisfaction of those who were dispossessed by the land redistribution under the Buganda Agreement (i.e. the Bataka clan leaders) When Chwa II took over from the regents, the Bataka who had formed a quasi-political association in 1921 (the Bataka association) appealed to the Kabaka to ask the Governor for a review of the agreement. They were joined in this appeal by the peasants who were aggrieved by the rent (busulu and envujjo) payable to the mailo land owners. While the Kabaka Chwa II was sympathetic, the Lukiiko (main beneficiaries) rejected the demands. Nonetheless, by this time, the colonial government had itself become concerned about;

- a) The relations between landlords and tenant in Buganda
- b) The bataka grievances which if unaddressed threatened to become even more problematic to administration of the protectorate.
- c) The overall system of land tenure in Uganda was not delivering efficiently in economic terms.

The colonial government set up a commission of inquiry in 1952 and this resulted in the passage of the Busulu and Envujjo Laws of 1928 to regulate the rent that was to be paid by the peasants on land in Buganda. The law was promulgated basically because there was no limitation on the amount of rent/tribute that the landlord could extract as much as possible from tenants. The peasants felt oppressed by the

system and the colonial government concluded that this state of affairs was unproductive. The Busulu and Envujjo Law;

- (a) Placed a limit on the amount of busulu and envujjo that a Landlord could extract from tenants
- (b) Guaranteed to Buganda peasants complete and hereditary security of tenure i.e. they could not simply be evicted for failing to pay rent (allowed for continued cultivation of land.)

The Busullu and Envujjo Laws represented a revolution in the land relations in Buganda. In social terms, the law created new relations between the landlords and the peasants in reducing the arbitrariness and insecurity in those relations. It also reduced the material basis and power of landlords. Economically, the tenants gained security of use of land and this ensured that cash crop production continued-in effect, the system of capital production benefited from this new legal relations (guarantee of raw materials.) For the Bataka who had raised the complaint there was no gain/benefit (in fact, the Busullu and Envujjo Law robbed them of their political support base. The case of the Kabaka was more complex. On the one hand he was seen as a sympathetic listener to the plight of his people. On the other hand however, he was not actually able to deliver any reform or solution to their problems/grievances. His prestige and position was generally undermined that he was to lament thus;

'My present position is so precarious that I am no longer the direct ruler of my people. I am beginning to be considered by my own subjects merely as one of the British government paid servants. This is solely due to the fact that I possess no real power over my people. Even the smallest chieftainship is under the control of the provincial commissioner. Any order given whether by local chiefs or the Lukiiko serfs is always looked upon with contempt unless and until it is confirmed by the provincial commissioner.'

The Busullu and Envujjo law was able for a time being to defuse social and political confusion in the kingdom. However, it failed to address the grievances of the Bataka who would eventually organize the most significant anti-colonial

movement. The failure to address their grievances was to lead to increased antagonism and protests.

The Kabaka Crisis of 1953-5 and its Impact on National Politics in the Protectorate. Sir Andrew Cohen arrived as Governor in January 1952. As a governor he sought: (a) education and training of African administrators

(b) the increment of African participation in central government and

(c) Placing the local government on stable, democratic and viable foundation significantly, one of Cohen's first concerns was in regards to Buganda.

In March 1953, Sir Cohen issued a joint memorandum with the Kabaka on constitutional development and reform providing for:

(a) sixty of eighty nine Lukiiko members were to be elected

(b) The kabaka to consult a Lukiiko committee before selection of his ministers (these reforms were bound greatly to weaken the entrenched position of the chiefs

(c) increase of responsibilities of the Buganda Government local services such as those involving primary and junior secondary schools, rural hospitals, dispensaries, field services for soil conservation, livestock breeding and disease control were to be transferred to the Buganda Government (as form of devolution of services.)

This devolution of services, rather than being contrary to the promotion of Protectorate unity, was regarded as essential to it. In fact, the reforms of March 1953 were an attempt to forestall a federal system rather than an initial step towards it. In fact, the 1953 memorandum stated expressly that "the Uganda Protectorate has been and will continue to be developed as a unitary state." Later in 1953, Sir Andrew Cohen introduced changes in composition of the Legco. To increase the total number of representatives was increased from sixteen to twenty eight, with fourteen of these African.

Notably, the 1953 reforms would underline the dependence of colonial government on the loyal cooperation of the Kabaka. With the ascendancy of Mutesa II as the Kabaka there was bound to be friction. Mutesa II was educated at

Cambridge and already offended that he was not treated with honour at the coronation of Elizabeth II in 1952, the reliance on Mutesa to promote colonial government policy was unlikely to be successful.

Nonetheless, he was keen to support the March 1953 reforms. But where the Cohen policy (in strong belief that Uganda must develop as a unitary¹⁰ state threatened the tribal institutions including the kabakaship to decline in importance.) This factor and concern would spark off the crisis in Buganda that came to be known as the Kabaka Crisis 1953-5.

The Kabaka crisis of 1953 was sparked off by a speech made on June 30 1953 by the Secretary of State for the colonies in which he referred to the possibility 'as time goes on of still larger measures of unification and possibly the federation of East African territories.'¹¹

This pronouncement caused adverse public reaction within Buganda. In a seriously worded letter, Kabaka Mutesa II argued that the affairs of Buganda be transferred from the colonial office to the Foreign office and a timetable be prepared for independence of Buganda.

He (i.e the Kabaka)and his ministers could no longer feel happy about Buganda's position under the agreement apart from the danger of federation, they consider the policy of developing a unified system of government along parliamentary lines must inevitably result in Buganda becoming less and less important in the future.

The Kabaka's (and Buganda's) demands were far more than a challenge to any proposed federation, as it meant a complete break with Governor Sir Cohen's vision of a unitary Uganda state. The Kabaka had reaffirmed in his letter Buganda's separatist tendencies and assertion of a claim to a special status, that had

¹⁰A unitary state is a state governed as a single power in which the central government is ultimately supreme and any administrative divisions (sub national units) exercise only the powers that the central government chooses to delegate. The majority of the states in the world have a unitary system of government.

¹¹ Withdrawal of Recognition from Kabaka Mutesa II of Buganda, Comd.9028, London, 1953, p.7.



apparently been evident as early as since 1902, for as the Omuwanika of the Kingdom was to assert in 1954.

After some two or three years (after 1900 Buganda Agreement) our dependencies were changed into provinces to rank as being equal as Buganda Province. As regards administration, we are of equal rank but otherwise we the Buganda Kingdom is independent.

On 27th October 1953, the Lukiiko passed a resolution requesting that the Kabaka refuse to name any Baganda to the Legislative Council. This not only endangered the success of the newly formed Legco. but also rendered a unitary Uganda extremely unlikely. After a series of unsuccessful negotiations, Sir Cohen placed before the Kabaka certain undertakings to which he was required to agree;

- (a) That the Kabaka would positively co-operate in the future progress of Buganda as an integral part of the Uganda protectorate (March 1953 Memorandum)
- (b) That the Kabaka submit the names of Buganda members to the LegCo. And
- (c) That the Kabaka cooperate loyally with Her Majesty's Government in the organization and administration of Buganda in accordance with the 1900 Agreement.

When Kabaka Mutesa II refused to heed to these undertakings, the Governor Cohen withdrew recognition from him under article 6 of the Buganda Agreement, declared a state of emergency and swiftly deported him to the United Kingdom (under Emergency (deportation & Exclusion) Regulations, 1953. Following the deportation, with the Lukiiko refusing to select a successor Kabaka, the affairs of the Kingdom were placed under Regents by virtue of the Emergency Powers (Regents of Buganda) Regulations 1953. In a subsequent court case of Mukwaba & Ors v. Mukubira (1954) the exercise of those regency powers were challenged. In the end the case was a disguised challenge of validity of the withdrawal of recognition and deportation of the Kabaka. In that case, three of the Kabaka's nominees to the Lukiiko (plaintiffs) contested the right of four of the recently nominated Lukiiko members (respondents 1-4) to take their place in the Lukiiko as

they had not been nominated by the Kabaka. The Attorney General argued on the non justiciability of the issue (which was upheld by the court.) The issues before the court were;

- (a) Whether the withdrawal of recognition from the Kabaka was a matter that the courts could inquire into
- (b) Whether the subject matter of the dispute was one affecting the administration and organization of the kingdom
- (c) Whether the acts of the Kabaka justified the withdrawal of recognition under the provisions of article 6 of the Agreement
- (d) Whether the regents regulations of 1953 justified the nomination of the defendants to the Lukiiko.

The Court held that:

- (a) the withdrawal of recognition was an act of the state into which courts could not inquire into
- (b) the subject matter of the dispute (submission of names of Baganda's representatives to the LegCo.) was not one affecting the administration and organization of the kingdom within the meaning of article 6 of the 1900 Buganda Agreement. Therefore no right to withdraw recognition had arisen under article 6 on the 30th November 1953.
- (c) The phrase Kabaka, chiefs and people in article 6 of the Agreement had to be read conjunctively, and it had not been shown that either the chiefs or people of Buganda had shown signs of disloyalty.
- (d) While the powers to nominate members to the Lukiiko had prior to the withdrawal of recognition lay with the Kabaka, the regents power to nominate members to the Lukiiko (and to forward laws by the Lukiiko to the Governor for his consent.

The case was essentially dismissed on the ground of non justiciability was nonetheless, a defence that according to Low and Pratt gave the impression that

the colonial government did not in fact respect the Agreement or feel itself bound by its terms.¹²

The reaction to the deportation of Mutesa II was nearly unanimous with the Baganda angered by the deportation. Even those who were hostile to the traditional rulers joined voices agitating for the Kabaka's return. Sir Cohen set up a committee (Hancock Committee) to consider

- (a) The constitutional reorganization in Buganda
- (b) Continued participation of Buganda in the protectorate and
- (c) Representation of Baganda in the LegCo (of the Protectorate.)

At the end of Namirembe Negotiations it was agreed that:

- (a) There was a need to replace tribal autocracy with the structure of modern representative government;
- (b) The ministers were to be responsible to Lukiiko not to the Kabaka
- (c) The appointments (and dismissal) of chiefs was to be surrendered to Buganda Government.

However, it would not be until May 1955 that Mutesa II was allowed to return, with a new Buganda Agreement of 1955 in place. By the time the Kabaka was deposed and deported, his popularity had suffered mainly as a result of the 1940s uprising in which his chiefs and ministers had been targets.

The Kabaka's stand was thus not only a challenge to the British policy, but an effort to consolidate loyalties of his own people. Paradoxically, by taking a stand against the colonial government, Mutesa II was perceived both within and outside Uganda as a Nationalist. That heroism was further enhanced by virtue of the fact that in setting the Kabaka crisis and drawing up a new agreement, the Buganda Agreement of 1955, in which the colonial government made a major concession to the Kabaka on the issue which had been the cause of his deportation.

¹² Low, D.A. & R.C.Pratt, Baganda and British Overrule, Two Studies, 1955, p.342.

Thus in the preamble of the Agreement it was provided:

Her Majesty's Government has no intention whatsoever of raising the issue of East African Federation either at the present time while the local public opinion on this issue remains as it is at the present time of signing and recognizes accordingly that the intrusion of the Uganda Protectorate in any such confederation is outside the realm of practical politics at the present time or which public opinion remains as it is.

Her Majesty's Government also undertook to consult with the Government of Buganda on the issue of federation. In this way, the 1955 Agreement put to rest the question of federation, thus upholding the Kabaka's original objection. The main features of the 1955 Agreement were:

- (a) It was the constitution for Buganda. The Buganda Government was transformed in structure, if not in spirit, into a constitutional monarchy (as appears in the appendix.) The framework was thus established within which the objective of a united, if not unitary Uganda governed along the parliamentary lines was to be pursued.
- (b) It provided for the participation of Buganda in the Legislative Council, with Buganda's representatives elected on a format of indirect elections with the Lukiiko acting as an electoral college.¹³ The composition was not to be altered for six years i.e 1955-1961.¹⁴

The paradox was although Mutesa was projected as a nationalist for standing up to the colonial government, in fact he was only protecting Buganda's sub-nationalist (federalist) interests. From 1955 onwards, the Kabaka and his Government embarked on a course to ensure protection of the interests of Buganda. The separatist tendencies of Buganda became heightened notwithstanding the formal constitutional arrangements in the 1955 Agreement. For example:

¹³ See: Article 7 and the second schedule (which provided for regulations on elections ancillary to art 7.) of the 1955 Agreement.

¹⁴ See: *Katikiro of Buganda v. Attorney General of Uganda* (1959) E.A 382.

- (a) 1958 and 1961 Legislative Council elections-boycott and demand for indirect method of election.
- (b) Formation of the Kabaka Yekka party at the onset of conferences of self-governance.
- (c) Demand for independent Buganda as a State (secession) 1960 memorandum to Her Majesty's Government.
- (d) Federal Status and Indirect Elections to National Assembly at the Lancaster Conference, 1961.

The Birth of Political Parties in Uganda and Colonial Reforms from 1952 to 1958

It was at the height of the human face reforms that Uganda's first recognized genuinely nationalist party, the Uganda National Congress (UNC) was set up on March 1952 by Ignatius Musaazi. A freedom Charter and Manifesto was published. The UNC claimed as its main priorities the realization of national unity, peace, freedom and equality.

Its driving force was the desire to transfer power and authority from the colonialists to indigenous black Africans. (It adopted the slogan 'Cry for Self Government Now' to give expression to these ideas.)

The second political party to be established was the Democratic Party (DP) set up in 1954 of 1956. The DP was also established as a nationalist party with the main aim (and objective) of addressing what was perceived to be the colonial rule and Mengo Administration.

This had led to a feeling of marginalization amongst the catholic elite. The DP and UNC did nonetheless share a common vision that Buganda's sub-nationalism was incompatible with the notion of a united independent Uganda. This particularly put the DP at logger heads with the interests of Buganda. The manner in which the two parties approached this issue was to shape the history of the immediate pre- independence era.

The catchword of colonial reforms of this period (1952-58/61) had become 'Africanization' i.e. transfer of power into African hands which process was to cover political and socio-economic spheres. Thus the colonial government embarked on

the process of recruitment and training and promotion of Africans to higher positions in the civil service. A sum of BPs 200,000 from East African Development Fund (EADF) was allocated for scholarships to Ugandans to take up studies overseas. By 1953, plans were in place for establishment of a unified civil service and the principle of equal pay. Further BPS 10 million came from the EADF for the purposes of education with 1/5 of this sum allotted to technical education and another BPS 1 million set aside for community development, with a similar amount (1 million) for expansion for medical services, while BPS 2 million was directed at agriculture. In the political arena, the colonial government expanded the representation of Africans in the Legislative Council.

By 1954, the composition of the Legislative Council was as follows: 1

Governor

27 Representatives

8 Officials

11 Cross-benchers¹⁵

9 Ex Officio

Total: 56 Members

The second major reform in the political arena was the introduction of ministerial position(s) for Africans for the first time, with three Ugandans becoming ministers-

- (a) Z. Mungonya
- (b) D.Nabeta and
- (c) A.Kironde

Thus for the first time in the colonial period, Ugandans would participate in government administration and policy.

¹⁵ The new category of crossbenchers was made up of government nominees allowed to freely debate and express views on any matter but when it came to voting had to vote with Government, ensuring that all matters in the house, Government was always able to maintain a majority (of two members.) In other words, despite the expanded

representation, the colonial powers in the state remained intact.



The Governor spelt out the functions that the new representative members from districts and kingdoms would perform as:

- (i) They were to represent the African rural population and act as the voice of the Africans in articulating their views/grievances.
- (ii) They were to act as a check on the government and scrutinize policies of the state.
- (iii) They were to provide leadership for the African Community in the understanding of the changes underway in the protectorate to prepare the people for a transition to a new nationalistic system of government.

It can be said that at this point in time, the colonial government had finally come round to accepting that change was inevitable (and the colonial system would not last forever.) In spite of all these changes, so many problems remained, amongst of which was:

- (a) Full participation of Africans remained largely minimal. The ministerial allotment was nominal (and confined to very insignificant portfolios).
- (b) Draconian laws remained (e.g. deportation Ord.) and practices such as detention without trial, bannings, restrictions on freedom of expression and deportation continued well to eve of independence (cf. Mutesa II (1953), Re Binaisa (1959) E.A 997)
- (c) Discriminatory/differential treatment in hospitals, residence and schools continued right up to (and even after) independence
- (d) Encouragement of factionalism and ethnicism of political activities by the government, by fostering religions and ethnic concerns.
- (e) African recruitment into the civil service was extremely slow with high positions still dominated by Europeans and Asians throughout the years up to independence.
- (f) Encouragement by the colonial government of (in fact turned a blind eye to) the separatist tendencies growing in Buganda (in aftermath of the Kabaka crisis of 1953-55) leading to an even more factional politics in the run up to independence.

Therefore, the legacy of this period was a pragmatic one. On the one hand, it set the stage for African representation while on the other hand, it undermined and neglected the gains to be made by truly nationalistic struggle. The questions are thus posed of the prime colonial actor of that period –Sir Andrew Cohen:

- (a) Was he a great reformer or ultimately a disaster for Uganda?
- (b) What was the impact of his tenure in constitutional and political history of Uganda?

Movement towards Independence-Representation and Commissions

MOVEMENTS TOWARDS INDEPENDENCE – REPRESENTATION AND COMMISSIONS

With the reforms introduced by Sir Andrew Cohen and the emergence of political parties, the period from 1955-1962 was basically characterized by two features:

- (a) Massive polarization of political parties and organizations. Political parties were formed almost every day and often collapsed as soon as they appeared. There was a great interest in their formation, but only two remained strong and steadfast:
 - (i) DP led by Benedicto Kiwanuka
 - (ii) UPC (a merger of UPU of John Magezi and an Obote-splinter faction of UNC.
- (b) Increasing entrenchment of the interests of Buganda (which was interested in the preservation of the status quo) and embarked on a policy of no compromise with the colonial government(interests of Buganda had been given attention-1955 Agreement)

By the time of expiration of Sir Cohen's government in 1957 there were a number of outstanding problems. The expansion of infrastructure had paradoxically resulted into an increase in expatriate staff. But 1957 is significant for another event for African constitutionalism with Ghana becoming the first African colony to achieve independence, and thus spurring a wide momentum for decolonization of the continent.

Against this background, Sir Fredrick Crawford as the new Governor was faced with new demands for constitutional reform:

- (a) Elections to the LegCo should be direct
- (b) Districts demanded equal treatment with Buganda. In this respect, the new Governor organized for elections at the end of 1957 with the franchise based on eligible voters to be:
 - (i) 21years
 - (ii) Able to read and write in own language
 - (iii) Owners of freehold or mailo land (if not land owners have occupied the land years before registration, or been regularly paying taxes for at least two years or earning income of at least 100 pounds a year, or own property movable or immovable) of at least 400 pounds.

The 1958 LegCo. Would for the first time in Uganda's constitutional history be made of Africans representatives who were directly elected. The only parts of the protectorate in which the election was not direct were:

- (a) Karamoja
- (b) Ankole (representatives chosen by District Council)
- (c) Bugisu (representative nominated by the Governor) Buganda refused to send any representatives to the LegCo.

The 1958 LegCo was made up of 5 members from UPC...from DP and 7 independents.

The constitutional developments of the period following the 1958 elections was characterized by two major reports namely:

- (i) The 1959 Report of the Uganda Constitutional Committee by JB Wild as its Chairman (referred to as the Wild Report)
- (ii) The 1961 Report on Uganda Relationships Commission by Earl of Munster (referred to as the Muster Report).

Together, the commissions and their reports were fundamental for Uganda's constitutional development at this point in time.

I. THE REPORT OF THE WILD COMMITTEE, 1959

The terms of reference for the Wild Committee were:

- (i) To advise the Protectorate Government and recommend on the form of 'direct elections' on a common roll for representative members in the LegCo. In other words, because previously elections had been segregated along racial lines the fear was that this would continue and further that Europeans and Asians would lead to their demand for citizens' rights which the nationalists were opposed to.
- (ii) To advise on the total number of seats to be filled the electorate
- (iii) To determine the mode of allocation between the different areas of the protectorate.
- (iv) To consider and advise on the question of representation by the non-Africans.
- (v) To advise on the size and composition of the Government

The Committee also made certain recommendations outside its mandate, amongst which were;

- (i) Apart from the elected members of the LegCo., there should also be specially elected members chosen by the LegCo. sitting as an electoral college (to elect members representing different interests.)the government (and the losing party would be the official opposition.
- (ii) The party with a clear electoral majority in the elections should form
- (iii) The ExCo. should become a Council of Ministers with collective responsibility to the National Assembly and that members of the Council of Ministers should be selected from the National assembly with exception of 3 positions namely:
 - (a) Chief Secretary
 - (b) Attorney General
 - (c) Minister of Finance who were to be nominated by the Governor
- (iv) The Governor should have veto powers if necessary.

Further, in light of the many views that had been expressed on the form of government that Uganda should adopt and on the question of the relations

between the various peoples of the protectorate, the Committee recommended that before the 1961 elections, a conference should be called to examine the issues and make comprehensive recommendations on these matters.

II. HARDENING OF BUGANDA AS TO ITS STATUS AND INTERESTS FROM 1958 ONWARDS

While the Wild Committee was making its consultations, Buganda kept on hardening as to its perceived status in the protectorate. With the 1958 boycott, the hardline elements comprising the Kabaka, chiefs, and landlords began to map ways of ensuring that Buganda that Buganda's autonomy was secured. The boycott of elections had in itself been designed to put pressure on the colonial government to give in to Buganda's demands. A movement began to grow in Buganda with its primary goal being to secure the protection of Buganda's interests against the designs of the nationalists. The culmination of the movement's function was the submission in November 1960 of a memorandum to Her Majesty stating as follows;

- (a) British protection over Buganda established by the 1900 Buganda Agreement should be terminated and
- (b) As a consequence of the termination of the status, plans should be immediately made for an independent Buganda.

Amongst other things, the plans should include:

- (i) establishment of friendly relations between Buganda and HMG and the exchange of ambassadors and High Commissioners
- (ii) Buganda would remain in the common wealth and seek membership in the UN
- (iii) All powers previously exercised by the Governor to be vested in the Kabaka and his Government
- (iv) Buganda would have its own armed forces with the Kabaka and his Government
- (v) All institutions of learning in Buganda with the exception of Makerere College would fall under Buganda jurisdiction

- (vi) Arrangements for independence of Buganda should be complete by 31st December 1960.

On 1st January 1961, the Lukiiko declared the independence of Buganda. Although the declaration was never a reality, the message was very clear:

“Neither the protectorate Government nor the nationalistic politics could afford to ignore Buganda in the move to independence and the demand and interests had to be given respect and attention, failure of which the independence sentiments could not be realized.”

This was sharply brought home with the preparations for the 1961 independence elections. Although the colonial government went ahead with the elections, the Kabaka's Government directed its followers not to register for the elections. Indeed by the time the registration was closed, only a handful of mainly DP supporters had actually registered. In effect, Buganda had organized another boycott which was successful. In political terms, the boycott marked the death of DP in Buganda because the DP had defied the boycott.

Ben Kiwanuka was portrayed as anti-Buganda and as a man who did not respect the Kabaka. It was not helpful that Kiwanuka was also of the Catholic faith. The propaganda that followed the boycott was the Catholics wanted to take over the protectorate. On the other hand, UPC gained from the boycott because they had decided not to fill in candidates in Buganda. The Buganda Government therefore felt that there was a possibility of good relations with UPC's Apollo Milton Obote, and marked the onset of the UPC-Buganda alliance (later cemented during the Lancaster conference).

III. REPORT OF THE MUNSTER COMMISSION

Set up in 1960 by the Secretary of State for the Colonies, the Report of the Uganda Relationship Commission was given by the Earl of Munster. Its basic terms of reference to consider the official form of government most appropriate for Uganda and the relations between the central government and other authorities in Uganda particularly the central government and other authorities in Uganda particularly the kingdoms.

The Commission was supposed to be guided by the following:

- (i) HM Government's decision (resolution) to grant Uganda independence through appropriate stages
- (ii) The development of stable institutions of government (for Uganda)
- (iii) Incorporation of specific circumstances and needs of peoples of Uganda as they became independent
- (iv) Consideration of the desire of the peoples of Uganda to preserve existing institutions and customs as well as to uphold the status and dignity of their kings and rulers.

The Commission was supposed to bear in mind the special relations between HMG and the Kingdoms with whom agreements had been made in the early 1900s. The Commission had to make sure that all these aspects were considered.

Thus the 1961 Munster Commission report and together with the 1959 Wild Committee report would provide the framework for the two constitutional conferences, of which the first was held in September 1961 at Lancaster and the second in June 1962 at Marlborough.

The Munster Commission made several recommendations namely:

- (i) As regards trends of secession, it was unacceptable to allow Buganda to separate from the rest of the protectorate that had been in existence since 1894 must continue till Buganda has reconciled itself with the rest of Uganda.
- (ii) The relations of Buganda and Uganda should be a federal one
- (iii) The central government should have power over foreign affairs, armed forces and police. Buganda government should have power over the institution of the Kabaka, Lukiiko and matters governing traditional aspects of the Kingdom. Any residual powers (not allotted either of the two) should be shared, but the central government should have overriding power.
- (iv) Buganda should be given a guarantee that any laws made by the central government which would affect the Kabakaship and Buganda's other

- exclusive interests would be of no effect unless agreed upon by the Lukiiko. Such a guarantee would be of no effect unless enforceable by courts and Buganda should have the deciding voice in determining the form of guarantee.
- (v) The Kabaka should withdraw from politics and become a genuine constitutional monarch to perform just ceremonial non-executive functions.
 - (vi) The Lukiiko of Buganda should be directly elected. It would act as an electoral college for 20 seats of Buganda's representatives to the National Assembly (indirect elections) this would be very controversial during constitutional conferences.
 - (vii) Voting in future would be by universal adult suffrage.

With regard to the character of Government, the Commission stated that Uganda should be a single democratic state with a strong central government. Within this state, Buganda should stand in federal relations. With respect to the Head of State, until Uganda attained independence. It would be the governor representing HMG, thereafter it was appropriate to support a Governor-general to allow time for debate on the Head of State. Further, the Head of State would exercise prerogative powers of the Crown-summon and dissolve parliament (NA), make treaties, etc.

The legislature was to become the National Assembly. Any amendments to the constitution upon independence were to be passed by 2/3 majority of the National Assembly. The courts of law would have power to declare the constitutional legislation invalid.

In conclusion, the Wild and Munster reports laid out the broad parameters for the debate on the constitution for independent Uganda. In fact, in certain respects, the two reports foreclosed debate, while in others, they opened up issues to incorporate new dimensions. Indeed it can be said particularly of the Munster report that it provided a draft constitutional report for Uganda. At the opening of the Lancaster conference in September 1961, the Secretary of State (for colonies) expressed the view that the Munster Report was a valid and useful

foundation. Further, it gave the view that as far as relations with Buganda were concerned, the Munster proposals were so far the best if not the only way of securing the cooperation of the people of Buganda in the creation of an independent Uganda.

CONSTITUTIONAL DEVELOPMENTS IN UGANDA PROTECTORATE FROM 1961- 1962

First Constitutional Conference at Lancaster (September to October 1961)

The first constitutional conference was held in September and 8 October 1961. There were delegates from HMG, the Governor of Uganda in his own capacity, the Uganda Government led by Ben Kiwanuka (as chief Minister), the opposition UPC, Members of the Kingdoms, districts and urban authorities.

The stakes at the conference were extremely high. Each of those attending were desirous of ensuring that its interests were fully accommodated especially as the primary objective of the conference was the promulgation of the constitution providing for internal self-government. In working out the provisions of the constitutions, the objective was to ensure that a suitable framework for Buganda's interests was in place.

The conference emerged with many recommendations with the most difficult issues being the relations between the different entities of the protectorate and especially the question of Buganda.

In fact, in the two instances at Lancaster, the discussions broke down due to these relations in particular as regards:

- (i) The issue of the 'lost counties' and
- (ii) The issue of elections as to whether they should be direct.

The background to the latter was clear. In 1961, the Buganda Government had boycotted the LegCo. elections for among other things the decision that the elections be direct. (through the mechanism of indirect elections Buganda would be able to secure representation by candidates who would completely be loyal and dedicated to her interests.

The Uganda Government led by DP leader Ben Kiwanuka strongly opposed this suggestion by the Munster Commission report arguing that indirect elections were against the franchise of the people of Buganda.

In a very lengthy discussion, Ben Kiwanuka noted that not only was the provision a recipe for instability and unpopular government, but it was only intended to appease the Kabaka and Baganda delegation as reward for her assistance in vanquishing Bunyoro.

The matter had always been of concern to Bunyoro because the majority of the populace in the counties were Banyoro. As far as Bunyoro was concerned. It wanted a return of all the 7 counties. The matter was not resolved and Bunyoro delegation walked out. Finally, the delegates were informed that a commission of the Privy Council would be appointed advise on how the issue could be resolved. In January 1962, a commission was appointed with Lord Molson as its Chairman to investigate and make recommendations on the matter.

Apart from these contentious issues, the conference was able to decide most of the issues involving the constitutional makeup, the executive, legislature and judiciary and the operation of these organs. The conference ended on 8th October 1961 with an agreement that independence would be granted exactly one year later on 9th October 1962. Aside the constitutional matter that were resolved, the conference also produced several interesting developments. The most important was the alliance (marriage of convenience) between UPC and Buganda. The merger came mainly because UPC had supported the kingdom on the issue of indirect elections leading it to believe that it had UPC on their side.

Stemming from this development was the realization by Buganda that the only way to secure the interests would be creation of a political movement devoted to promotion of such interests.

The movement was born and came to be known as 'Kabaka Yekka' (King Alone). This KY movement would be mobilized for the next elections in 1962 with Buganda this time fully participating, and did in effect register success for UPC with 37 to

DP's 24 and KY's 21. UPC would form a coalition government which guaranteed UPC a firm majority in the National Assembly.

SECOND CONSTITUTIONAL CONFERENCE AT MARLBOROUGH

The second constitutional conference opened on 2nd June 1962 under the Secretary of State with Governor of Uganda, delegations from UK, representatives of kingdoms, districts, urban authorities and the opposition DP. The work of the conference was mainly done by three committee:

- (i) The constitutional committee
- (ii) Citizenship committee
- (iii) Fiscal committee (deal with matters of taxation and finance)

By this time, Mouson Commission, had submitted its report and a new constitution had been prepared on 1st March 1962. Nonetheless, the matters that had been settled at Lancaster were still outstanding that is:

- (i) Status of the three other kingdoms-Ankole, Bunyoro and Toro. Only the question of Buganda had been addressed, Buganda wanted a federal status. They were also accompanied by a delegation from Busoga (led by the Kyabazinga) who argued that they too had traditional institutions and should similarly get federal status.
- (ii) The lost counties issue. The Mouson Commission had started from January to May 1962 to make recommendations on the counties (the seven were Buyaga, Bugangaizi, Buruli, Bulemezi, Bugerere, Buwekula and Ssinga. The Commission recommended that two of these counties (Buyaga and Bugangaizi) be transferred to Bunyoro before independence with the remaining 5 with Buganda.

At the Marlborough House, outstanding matters including the framework of an independent Uganda were generally settled. The problematic issues would remain however that of the lost counties. The Bunyoro delegation argued that there was no reason why only two of these counties should be returned. On the other hand, the Buganda delegation argued that the peoples of these counties were settled, happy with Buganda, and there was no need therefore to upset the state of affairs.

This caused a statement and because of this, the Governor was compelled to take a stand on the issue as:

- (i) There would be no immediate transfer of territory
- (ii) Administration of the two counties (in qn) would be transferred to the central government
- (iii) After not less 3 years date of transfer, the National Assembly would decide on a date for holding of a referendum for two counties in which the electorate would be asked to make a choice amongst:
 - (a) Becoming part of Buganda under administration of Kabaka's Government
 - (b) Becoming part of Bunyoro under the Omukama
 - (c) Becoming entirely new district under administration of the central government.

The referendum would in effect be the deciding factor on the issue of these counties.

The Prime Minister Obote accepted responsibility for administering the referendum. On the last day of the conference, the delegation of Bunyoro declared that the decision made was unacceptable and withdrew. The report was therefore drafted in their absence. Although Buganda did not withdraw, it also declared that the decision was unacceptable. In effect, the lost counties issue remained outstanding.

The conference ended on 29th June 1962 with various parties (delegations) agreeing that the decisions that had been made provided a firm foundation for progress towards independence. The legal instruments that gave effect to the Marlborough decisions were:

1. Independence Act of August 1962 which stipulated that Uganda would become independent on 9th October 1962.
2. Uganda Independence Order in Council of 2nd October 1962 which had the independence constitution appended to it as a schedule.

Thus on 9th October 1962, the Union Jack was lowered for the last time and a new flag for the independence of Uganda was raised. The 1962 Constitution had been subject of debate, with some politicians arguing that it emphasized divisions, parochialism at the expense of national unity. Scholars like Prof. Kanyeihamba consider the 1962 Constitution as having hampered the power of government by placing many obstacles in its path. Other have argued that the constitution did not go far enough in decentralizing power and authority and that its problem was too much power in the central government.

Question:

Given the nature of Uganda's history from 1894-1961, the 1962 Constitution was only the inevitable product and expression of that history. Discuss.



INDEPENDENT UGANDA GRAPPLING WITH THE CONSTITUTION 1962-65 THE STRUCTURES AND ARRANGEMENTS UNDER THE 1962 CONSTITUTION

A. The promulgation of the 1962 constitution was a landmark event in Uganda constitutional History. For the first time, the framework of government was to be undertaken within specific rules that attempted to observe the basic principles of constitutionalism namely; separation of powers, independence of judiciary, human rights and fundamental freedoms e.t.c.

Nevertheless, the constitutional framework together with the political situation obtaining in Uganda at the onset of independence meant that a number of problems remained unresolved. These problems included:

- (i) *The question of the Head of State- Not addressed by the Constitution.*
- (ii) *The question of the federal-unitary relations between Buganda and Uganda.*
- (iii) *The question of relations between Buganda and Bunyoro over the lost counties.*
- (iv) *Overall problems of governance-its mode and relations between the government and the governed.*
- (v) *Opportunistic tendencies on the part of personalities at the helm of government and political power.*

Invariably, there were other minor problems but these were the most outstanding and are discussed hereunder in details:

1. The independence constitution had maintained the queen as the head of the state and so necessitated the determination of a proper head of state for an independent Uganda. There arose different opinions between the parties, the kingdoms and masses, with the matter eventually bowing down to two major concerns; while the KY and the Kingdom of Buganda posed the question as to whether a commoner could pledge royalty, the UPC asked whether the Baganda could be trusted.

The broad membership of UPC opposed the idea that the party should not provide the Head of State. However, after several discussions and debate, it was resolved to give the office of the Head of State tone of the traditional rulers (specifically Kabaka Mutesa II.) When the debate, it was later conducted in the National Assembly the majority vote was in favour of traditional rulers would be eligible to be a constitutional Head of State. Thus by the Constitution of Uganda first amendment Act No.61 of 1963 it was stipulated that the president and the vice president of Uganda would be elected for a period of 5 years by the National assembly and further that only traditional rulers would be eligible for the offices. Therefore, on 4th October 1963 Sir Edward Fredrick Mutesa II (the Kabaka of Buganda and sir William Nadiope (the Kyabazinga of Busoga) became the first president of and vice president of the independent Uganda respectively.

Read: **Jowett Lyagoba v. Bakasonga & Others (1963) EA 57.**

Rather than solving the lacuna in the constitutional framework, the question only took new dimensions and breed new dimensions. Although the office was largely formal and non-executive (constitutional monarch) in Westminster styled government, tensions would begin to surface in relations between the figure head Head of the State and the Prime Minister (what did the formality mean? Who had precedence as between the Head of State and Prime Minister? Who could appear on TV to address the nation? Whether Mutesa should be allowed the police band at his birth day? e.t.c.

But perhaps more significant (as opposed as opposed to the rather petty concerns) was questions of allegiance of Mutesa II to both offices of Head of State and King of Buganda (the first test would come during referendum on the lost counties.) The situation was made worse because the Heads of State (Mutesa & the Prime Minister Obote) could not stand each other (marriage of convenience turned sour.)

The tension between these two personalities was nonetheless underlined by the broader question of Buganda's position in relation to the rest of Uganda

(viz Kabaka Mutesa's federalism as opposed to Prime Minister Obote's perceived unitarism.

2. The question of Buganda's position in relation to Uganda is without doubt traceable to the period of run-up to independence (Munster report 1961 and the conference.) The federal status of Buganda as a major aspect of the 1962 Constitution created a situation in which the demarcations of authority and jurisdiction become all too confused. The potential for tensions to flare up was always manifest in particular as regards matters of jurisdiction (NA law, courts e.t.c.) and Finance and revenue (schedule to the constitution.)

Read:

- **Kabaka's Government & Anor v. Attorney General of Uganda & Anor Privy Council App. No.56 of 1964.**
- **Attorney General of Uganda v. Kabaka's Government (1965) EA 393.**

In the wake of the lost counties referendum had disastrous effects upon the Kabaka's status and relations with Obote. This case highlighted how fragile the constitutional framework of the 1962 constitution (on the federal relations of Buganda in a unitary Uganda was. If the lost counties largely marked the end of the UPC-KY alliance/coalition, this case dammed the 1962 constitutional arrangement and spelled its doom (which would turn out to be only a year later in 1966.)

The case involved the distribution of finances between the central government and the government of Buganda and the question how much in a block grant Buganda was entitled from central government. The fact that the matter wound up in court and could not be amicably resolved between the two parties demonstrates how hostile their relations had become.

3. The question of lost counties had been the controversy of the second constitutional conference (Marlborough 1962), but the underlying tensions that underpinned the matter remained and simmered throughout the early years of independence. By 1961, Drum Magazine depicted that at least $\frac{3}{4}$ of the people in Bugangaizi were Banyoro notwithstanding 60 years of Buganda rule. In Buyaga, the situation was even much more striking with 15 Banyoro

for every Muganda. Even Sir Tito Winyi (omukama of Bunyoro) maintained that the case for the restoration of these two counties to his kingdom and the aspirations of the peoples of the counties would be underpinned by the two developments in 1963 and 1964.

Joseph Kazaraine v. Lukiiko (1963) EA 472, the applicant Kazaraine was convicted for inciting the people of Buyaga and Bugangayizi not to take part in revenue collection. The issue was to who the jurisdiction over the 2 counties was vested between the central government and Buganda government. Following the second constitutional conference had directed that the two counties should vest in the central government and so it would obviously follow that the latter was entitled to exercise jurisdiction over the territory. The court would let Buganda exercise jurisdiction more out of a desire not to upset the political set up given the volatile character of the matter, and in any event a referendum was scheduled that would resolve the issue.

Kazaraine case is important for a number of reasons:

- (i) *It underpinned the tension in the relations between Buganda and the two counties.*
- (ii) *It portrayed the confusion which the 1962 constitution had brought about with respect to an issue that was not resolved at the run up to independence.*
- (iii) *It demonstrated the problems from the fatal arrangements of the 1962 constitution had brought about with respect to an issue that was not resolved at the run up to independence*
- (iv) *It demonstrated the problems from the fatal arrangements of the 1962 constitution.*

THE REFERENDUM ON THE LOST COUNTIES 1964.

The referendum on the lost counties of 1964. Between 1962 -64, the Kabaka's government had laboured to justify why the counties should remain in Uganda.

- (i) *The undesirability of upsetting the administration arrangements that had existed for such a long period.*
- (ii) *The endowment of Buganda than Bunyoro that had 2 counties would benefit more under Buganda.*

- (iii) *The benevolence and non-sectarianism which had characterized the Kabaka's rule.*
- (iv) *The development of the counties had been secured under Buganda's rule. Further, there were concerns that a change of administration would adversely affect Baganda land owners. The central government went ahead with the referendum which was held on 4 Nov 1964. The 2 counties overwhelmingly voted to return to Bunyoro. Kabaka Mutesa II as president was supposed to sign the instrument (memo) confirming transfer but refused to do so. Obote as the Prime Minister put the issue before the National Assembly and through the Constitution of Uganda 3rd (amendment) Act, no. 36 of 1964 the territorial transfer was confirmed. The Buganda Government appealed to both the High Court and Privy Council and lost. The referendum was the final nail in the UPC- KY coffin marking the death of the coalition.*

There was widespread hostility in Buganda which would gain magnitude. For Obote and UPC, the referendum was a boost and showed that they could no longer be held at ransom to Buganda's demands.

Several KY MPs were in fact were in fact persuaded to cross to UPC undermining the strength of KY. Similarly, several members of opposition DP also crossed over. UPC was stronger than ever to enable the Government to control the National Assembly.

- 4. The problem of governance and autocratic tendencies would become a feature of the early years of independence. The pattern of leadership during the colonial period had emphasized the omnipotence of the ruler and the insubordination of the ruled. The legacy would manifest itself after attainment of independence. The post-independence rulers merely stepped into the shoes of their predecessors leading to a new form of autocratic rule. Obote exemplified this kind of new African leader such that even from the earliest days of independence autocratic tendencies had gradually began to creep into government and this was disrespect for the constitution and the exercise of excessive powers in this regard, where the constitution presented

obstacles. It would be bypassed and this tendency was illustrated in a number of cases.

Cf: Jowett Lyagoba v. Bakasonga & Ors [1963] EA 57. The case pertained to the election of councilors of the Busoga Lukiiko and the legality in particular of the election of 6 specially elected members of the Council. The issue at hand was whether a resolution by the Council and the endorsement by the Governor of Buganda conformed to the provisions of the 1962 constitution. The matter also touched the legality of Sir William Nadiope's election as Kyabazinga. The court upheld the challenge declaring various persons were unlawfully elected and would have to vacate the office.

THE KABAKA (UGANDA) CRISIS OF 1966 & THE PROMULGATION OF THE 1966 AND 1967 CONSTITUTIONS

The immediate causes and Events underlying the 1966 Kabaka/Uganda Crisis

On 4th February 1966, Prime Minister Obote was on a tour in Northern Uganda when Daudi Ochieng, an Acholi KY MP member moved a motion in Parliament demanding that there should be an inquiry into allegations that the then deputy Commander of the army Colonel Idi Amin and the two cabinet ministers Adeko Nekyon and Felix Onama and PM were involved in the illegal acquisition of gold in the the Congo-Kinshasha. It was alleged that the purpose of the smuggling of the gold was to aid Sudanese Anyanya rebels (Sudan People's Liberation Army) fighting a war of liberation against the government in Northern Sudan.

On 9th February 1966 (5 days later), Brigadier Idi Amin, But the plan was not executed. On 15th February 1966, following the return of Obote to Kampala, he set up a commission of inquiry headed by a judge of the EACA and assisted by a judge each from Kenya and Tanzania with Wiliam Wako Wambuzi (as Secretary), but its report would remain unpublished until Amin came to power in 1971.

On 22nd February 1966, one week after setting up the commission of inquiry, Obote announced the suspension of 1962 Constitution on grounds that the country had lost stability and certain people (whom he did not mention) were plotting to overthrow the government using foreigners.

On the same day in the afternoon, during a cabinet meeting in Entebbe, 5 cabinet ministers were arrested and detained. The army commander was dismissed and replaced with Col. Idi Amin.

On March 2 1966, by a way of special resolution the offices of the President and vice president were terminated with the Prime Minister Obote assuming all powers of Government on the advice and consent of the Cabinet. The incumbent president, Kabaka Mutesa II, protested strongly and Obote for the first time directly accused him of a plot to overthrow the lawful government of Uganda. On 16th April 1966, the 1962 constitution was declared abolished and in its place promulgated the 1966 interim constitution (passed by a vote of 65 in favour to 5 against.) This interim constitution is known as the pigeon hole/interim constitution since members were assembled in parliament with troops surrounding the parliamentary buildings, and Obote forced them to sign and agree to its promulgation. The members only found copies of it later in their pigeon holes.

SALIENT FEATURES OF 1966 CONSTITUTION

- (i) Uganda was declared a republic
- (ii) Buganda government was deprived of privileges accorded to her by 1962 constitution
- (iii) Parliament was vested with more powers as was the prime minister, otherwise, the provisions basically remained the same.

At the end of April 1966, a stormy session at Bulange Parliamentary seat of Buganda), the Lukiiko resolved not to obey the 1966 constitution and passed a resolution demanding that the central government withdraw itself from Buganda soil by 30th May 1966. It also alleged that the preparations were made the secession of Buganda.

On May 23 1966, the several chiefs suspected of influencing the decision of the Lukiiko were arrested and disturbances were prevalent throughout the Kingdom.

On the same day, the Minister of Internal Affairs promulgated the emergency regulations which inter alia;

- (i) *Prohibited the holding of meetings and consultations.***
- (ii) *Prevented publication of alarming reports.***
- (iii) *Imposed several draconian measures for the purpose of extraction of information from suspects.***
- (iv) *Granted to the police powers of search, arrest and detention (with conditions of deportation and exclusion).***

On the night of 23rd May 1966 a dawn to dusk curfew was declared in Buganda with the warning that persons in uniform not authorized to be so would be arrested. At dawn of 24th May 1966, soldiers of the Uganda Army led by the newly appointed army commander Idi Amin stormed the Kabaka's palace at Mengo and after a battle, the Kabaka fled into exile in the UK via Burundi.

The 1966 Uganda Kabaka crisis terminated with the military invasion of the palace and the eventual abolition of kingdoms. The final seal on the crisis was the passing of the Pension Act under which all former traditional rulers with exception of Kabaka Mutesa II were paid pensions and provision made for schooling of their children. Mutesa II died in exile in 1969.

THE IMPACT OF 1966 UGANDA/KABAKA CRISIS

1. The most prominent impact is with regard to the introduction of elements of militarism into realm of politics and government in independent Uganda. The introduction for the first time gave the military forces an inordinate degree of direct influence in Uganda's constitutional history. This would also breed a culture of resolving conflict through military force rather than by peaceful means. This would characterize the politics of Uganda till the present day (eg Amin, UNLF, NRA etc).

In other words, our political leaders are much more comfortable resolving conflicts. The legacy of the maxim *inter armis leges silent* (in the face of arms, the law is silent) does not speak, is more apparent in our history. In effect, the military is incompatible with the law.

Cf: *Uganda v Commissioner of Prisons, Ex Parte Matovu* [1966] 1 EA at p. 514.

Coram: Sir Udo Udoma CJ, Sheridan, J, Jeffrey Jones, J

Key Words:

- -Political Question Doctrine,
- Kelsen theory,
- legality of government and constitution and
- Legal Order.

Uganda v. Commissioner of Prisons, Ex Parte Michael Matovu [1966] 1 EA 514, is a decision of the High Court of Uganda in which Hans Kelsen's "General Theory on Law and State" and the Political Question Doctrine were considered in determining the legal validity of Uganda's 1966 Constitution. The 1966 Constitution had come into place following what was by and large, a coup d'état executed by Apollo Milton Obote when he seized all powers of government and suspended Uganda's 1962 Independence Constitution, eventually leading to its abolition.

On February 22, 1966, Uganda's Prime Minister, Apollo Milton Obote, issued a statement to the nation in which he announced that he had assumed all powers of government in the interest of "national stability, public security and tranquility". Two days later, he suspended the 1962 Constitution of Uganda. However, the parts of the Constitution relating to, inter alia; the courts, the civil service, the armed forces and the National Assembly were preserved for continuity of the basic functioning of the state. On April 15, 1966, Uganda's National Assembly abolished the 1962 Constitution by resolution and replaced it with the 1966 Constitution to be in force pending the establishment of a Constituent Assembly to draft and pass a new Constitution (this later came to be the 1967 Constitution). Under the new Constitution, all executive authority was vested in the President, in this case Apollo Milton Obote, to be exercised with the advice and consent of cabinet. Former President, Sir Edward Mutesa was consequently evicted from the State House and eventually forced to flee into exile. The new Constitution also abolished the federal states that had been created by its predecessor. The Applicant in this case, Michael Matovu, also the Saza Chief of Buddu in Buganda Kingdom, was arrested on May

22, 1966, and detained at Masindi Prison under the provisions of the Deportation Ordinance. He was subsequently transferred to Luzira Prison in Buganda Kingdom. On May 23, 1966, a state of emergency was declared in Buganda Kingdom by proclamation and this was later confirmed by the National Assembly which also passed new legislation governing such states of emergency in form of the Emergency Powers Act and the Emergency Powers (Detention) Regulations. Michael Matovu was released from prison on July 16, 1966 and ordered to leave. However, he was re-arrested upon stepping outside the Prison and consequently re-detained, this time under the emergency powers laws. The Minister of Internal Affairs ordered his detention on August 10, 1966, and the said detention order was served on him in prison the next day. A fortnight later, he appeared before a tribunal for review of his case. On September 6, 1966, Michael Matovu filed, through his advocate, what purported to be an application for the prerogative writ of habeas corpus under Section 349 of the Criminal Procedure Code of Uganda. However, his application involved the need to answer various questions requiring constitutional interpretation and so the presiding judge, Jeffreys Jones, J, referred the matter to a 3-member bench of the Court (Udo Udoma, CJ; Sheridan and Jeffreys Jones, JJ) for hearing and determination of the Constitutional questions (not the application for the writ of habeas corpus per se). The issues for determination revolved about the competence of the Application, the Constitutional validity of the emergency powers laws and therefore by extension, the constitutionality or legal validity of Michael Matovu's detention. The most important issue however, and the core of this precedent, turned out to be the question of the 1966 Constitution's validity. No doubt, the roots of this 1966 Constitution lay in an extra-constitutional act to wit, a coup d'état or revolution perpetrated by Apollo Milton Obote when he seized all powers of government.

Holding

In the first instance, the Court overlooked what would ordinarily be grave errors in the original application by Michael Matovu such as failure to file a notice of motion, name a proper respondent and reliance on defective affidavits. It considered that the liberty of a citizen was at stake and so decided to let substance prevail over form. Important to note that Michael Matovu had also formerly been the commissioner of prisons in Uganda.

“Indeed but for the fact that the application concerns the liberty of a citizen, the court would have been justified in holding that there was no application properly before it. In the first place the affidavits as intituled and headed are defective. There is no respondent named against whom the writ is sought and to whom the writ should issue.”

Political Question Doctrine

The Court also heard arguments in respect of the validity of the 1966 Constitution. The Attorney General of Uganda argued that the question of validity of the Constitution was a Political question which the court was precluded from inquiring into as it was a matter properly within the exclusive province of the other branches of government. For this proposition, decisions such as Luther v. Borden and Marbury v. Madison from the United States were relied upon. The Court, while accepting that the Political Question Doctrine was a sound and applicable doctrine, declined to hold the view that the validity of the 1966 Constitution was a political question. In its view, it was vested with power to interpret the Constitution and this power involved inquiring into the validity of a new Constitution rather than resigning that duty to co-ordinate branches of government. The Court also seemingly differentiated between questioning the validity of government and questioning the validity of the Constitution. It opined that it had no power to do the former but could do the latter. A thin line, however, stands between the two concepts and it is difficult to fathom a substantial difference between them. Nevertheless, the Court was seeking to determine which Constitution was the reigning, supreme law of the land. Was it the 1962 Independence Constitution, or the 1966 Constitution? For no two Constitutions could simultaneously exist and additionally, the judges were, as a result of their judicial oaths the oath of allegiance, bound to uphold and protect the Constitution of Uganda as by law established. This particular argument thus failed as the Court did not view the validity of the Constitution per se, as a political question.

The Kelsen theory argument

Having rejected the submission that the validity of the 1966 Constitution was a political question, the Court heard an alternative argument that incorporated Hans Kelsen's theory on how change in a state's basic norm may effectively create a new

and valid legal order to replace the state's former legal order, thereby creating a new binding legal regime. The Attorney General submitted that under International Law, an independent and sovereign nation may have its government or Constitution changed by way of a coup d'état, where an abrupt political change destroys a pre-existing legal order and effectively replaces it in a manner that pre-existing legal order did not itself contemplate. It was thus argued that the suspension of the 1962 Constitution and seizure of all powers of government by Apollo Milton Obote in February 1962 was in fact a coup d'état. Added to this were the events of ejecting former President and Head of State (Sir Edward Mutesa) from the State House and in fact his subsequent escape beyond the territorial boundaries of Uganda coupled with inter alia, the abolition of federal states, closure of appeals to the Privy Council and the elimination of the High Court of Buganda.

The apex of these events was of course the effective assumption by Apollo Milton Obote of the Executive Office of President. It was put to the Court that a coup d'état or revolution had occurred in Uganda, destroying the legal order underlying the 1962 Constitution and establishing the new legal order under which the 1966 Constitution was validly established. Reference was also made to how the new Constitution was effective, having been accepted by the masses as the new law. Further reliance was sought on the Pakistani Supreme Court decision of *the State v. Dosso* where the Kelsen theory was applied in a similar circumstance.

KELSEN'S THEORY

Kelsen's theory postulates that a "legal order" (basic norm) underlies every legal system which in turn consists of legal norms (binding rules of conduct). A legal order (basic norm) determines legal norms, which are valid as long as they are in accordance with the legal order establishing them. Legal Norms under a legal system may include periodic elections by which power is successively transferred, for example. Abiding by legal norms begets legitimacy and defying them creates illegitimacy.

The legal order or basic norm however, is the hypothetical, whole underlying basis for a legal government. In essence, it is the source or point of origin of all law and authority in the state; the very foundation of validity. Kelsen stated that a change

in a state's "legal order" or basic norm by way of revolution or coup d'état, which is a means not within the contemplation of the deposed legal order or system, creates a new valid government or Constitution if only the new legal order is efficacious in terms of control and recognition. Even when some of the legal content or legal norms of the deposed regime, for example preexisting laws, are preserved, they are in effect new norms because the reason for their validity has changed. Only their content is identical to the old norms.

"No jurist would maintain that even after a successful revolution the old constitution and the laws based thereupon remain in force, on the ground that they have not been nullified in a manner anticipated by the old order itself. Every jurist will presume that the old order – to which no political reality any longer corresponds – has ceased to be valid, and that all norms, which are valid within the new order, receive their validity exclusively from the new constitution. It follows that, from this juristic point of view the norms of the old order can no longer be recognized as valid norms." – Kelsen.

Kelsen emphasized that a new legal order must be effective in order to be valid, otherwise it becomes an illegality under the "still-valid" legal order it has failed to depose, exposing its perpetrators or architects to inter alia, treason charges. Kelsen additionally theorized that in international law, a revolution or coup d'état is a valid way of changing a government as long as the new legal order has effective control over the same territory as the one before it to the end that the identity of the State in question remains the same under international jurisprudence. Only its government changes, albeit through what domestically in that state, is an "illegal" means when you consider the deposed legal order's stipulations as to what is permissible as a mode of assuming power. On the international scene however, the new government becomes legitimate while the identity of the state remains the same.

"...by international law...the legal order remains the same as long as its territorial sphere of validity remains essentially the same, even if the order should be changed in another way than that prescribed by the Constitution, in the way of a revolution or coup d'état. A victorious revolution or a successful coup d'état does not destroy

the identity of the legal order which it changes. The order established by revolution or coup d'état has to be considered as a modification of the old order, not as a new order, if this order is valid for the same territory. The government brought into permanent power by a revolution or coup d'état is, according to international law, the legitimate government of the State, whose identity is not affected by these events. Hence, according to international law, victorious revolutions or successful coups d'état are to be interpreted as procedures by which a national legal order can be changed. Both events are, viewed in the light of international law, law creating fact. Again injuria jus oritur: and it is again the principle of effectiveness that is applied."

In *the state v Dosso*, the Supreme Court of Pakistan applied Kelsen's theory to determine that the Pakistani President's annulment of the 1956 Constitution of Pakistan and his imposition or declaration of martial law in 1958 amounted to a revolution that established a new legal order under which the law was to now be derived. Three days after annulling the 1956 Pakistani Constitution, the President had promulgated an order, the Laws (Continuance in Force) Order, which validated previous laws except the Constitution within the new legal order. Importantly, even the fundamental human rights that had been enshrined within Pakistan's 1956 Constitution were deemed to also have been excluded from the new legal order.

The Court (in ex parte Matovu) concluded that the Kelsenian principle was equally applicable in the case of Uganda and held that the 1966 Constitution was thus valid because it was the product of a successful revolution which had led to a new legal order, ousting that of the 1962 Constitution.

"Applying the Kelsenian principles, which incidentally form the basis of the judgment of the Supreme Court of Pakistan in the above case, our deliberate and considered view is that the 1966 Constitution is a legally valid constitution and the supreme law of Uganda; and that the 1962 Constitution having been abolished as a result of a victorious revolution in law does no longer exist nor does it now form part of the Laws of Uganda, it having been deprived of its de facto and de jure validity. The 1966 Constitution, we hold, is a new legal order and has been effective since April 14, 1966, when it first came into force."

The Court also accepted various affidavits of key government officials as sufficiently demonstrative of the acceptance by the people, of the new legal order and hence equally demonstrative of its efficacy. Emphasis was laid on one particular affidavit, sworn by the Permanent Secretary of the Ministry of Foreign Affairs, in which it was stated that all foreign countries with which Uganda had relations had recognized the new government or legal order.

The Court drew a distinction between recognition of a new Head of State and the recognition of a new State all together. It however concluded that it was beyond its province to 'accord recognition to the government' of its own country; that it was obliged merely to abide by the Constitution, which Constitution originates its (the Court's) own existence and which Constitution exists only because the State supersedes it (the Constitution) in existence. That is to say, there can be no Constitution without a State. This appears to be a final reiteration of the Political Question Doctrine. The Court, in essence, was saying that legality of government, as opposed to legality of the Constitution, was beyond its scope of jurisdiction. Although, again, it is difficult to see how determination of Constitutional Validity is not a determination of legality of government.

"We would like to emphasize, however, that the question of the recognition of the new Head of State of Uganda by foreign nations is not strictly within the scope of this enquiry. For, in our view it is not within the province of this court, nor is it within its competence to accord recognition to the government or international status of the government of this country which is our own country. Courts, legislatures and the law derive their origins from the constitution, and therefore the constitution cannot derive its origin from them, because there can be no law unless there is already a state whose law it is, and there can be no state without a constitution."

Significance

- (i) *Uganda v. Commissioner of Prisons, Ex Parte Matovu*, commenced and sowed the seeds for the advent of the Political question Doctrine in Uganda.

It has subsequently been applied in landmark decisions such as ***Attorney General v. Major General David Tinyefunza, Constitutional Appeal No. 1 of***

1997, wherein it was extensively applied by Justice George Wilson Kanyeihamba to distance the Court from the affairs of the army and the Executive authority over it, save in a few select, necessary cases; and ***IPPR v. the Attorney General, Miscellaneous Application No.592 of 2014***, in which the Applicant sought an injunction to bar the Ugandan government from enabling or sponsoring the exportation of qualified Ugandan medical doctors and nurses to Trinidad and Tobago. The Doctrine's effect has however been greatly curtailed, and nearly wiped out (seemingly) by the recent Supreme Court decision in ***CEHURD v. the Attorney General***, an appeal from the Country's Constitutional Court's decision in ***CEHURD v. the Attorney General, Constitutional Petition No. 16 of 2011***.

(ii) Erosion of the independence of Judiciary.

B. The second impact of the 1966 Kabaka crisis related to the operation of the judiciary with respect to pertinent constitutional issues. The crisis ushered in a period of judicial impotence as demonstrated in a number of cases. The more profound of these were the Ibingira cases I and II and Exparte Matovu (please refer to the above extract of Matovu's case. Also Read Ibingira & Others v. Uganda [1966] EA 305 (no. 1, Ibingira & Others v. Uganda [1966] EA 445 (no. 2).

THE AFTER MATH OF THE 196 UGANDA (KABAKA) CRISIS (1966-1971)

The events of the 1966 were followed by government proposals for a new constitution. In the first half of 1967, proposals by government on a new constitutional framework were tabled before Parliament. They were widely disseminated and the proposals debated seriously by politicians & academics.

After the public debate, government revised some of the proposals considered either too draconian or unrealistic. They were then submitted to Parliament which constituted itself into a Constituent Assembly that debated the proposals. The 1967 constitution being Uganda's third came into force

on 8th September 1967, and formalized most of the initial changes proposed in the 1966 constitution;

- (i) Establishment of the republic
- (ii) Abolition of the Kingdoms
- (iii) Creation of an executive president
- (iv) Increased restrictions on human rights.

Indeed after the 1967 constitution we see; several restriction on the press, free association and political activity.

The culmination came on 9th October 1969 when there was an attempt on Obote's life, for on 20th October 1969, the existing political parties including KY and DP were declared illegal and Uganda became de facto single party state (as this was not declared by law.) The proscription of the opposition parties led to further detentions and crackdowns which culminated in a situation where Uganda slipped under a virtual state of emergency.

The period was not all that disastrous. There were instances where a light of ray shone through as was in the case of **Uganda v. Rajat Neogy & Abu Mayanja (Transition Case)**, where Rajat Neogy was the editor of the famous 'Transition' Magazine for people concerned with Africa. In the middle of the 1976, a mercenary who had escaped from Katanga-Congo ended up in Uganda and was acquitted for illegal entry. This sparked off serious debate on the independence of judiciary in Uganda.

There were routine programs on TV, newspapers and Magazines. In an article about the transition, Mayanja an MP and well known lawyer alleged that there was a basic problem with the judiciary but the problem was reluctance of appointment of judges, and that it was unbelievable that after 7 years of independence the government had failed to find qualified lawyers to assume the posts of judges. In fact, Mayanja took the view that this was because Obote had failed to find anybody qualified from his home district Lango, that he would rather not have other Ugandans.

The letter was published and the accused detained and charged with the offence of sedition. The case was brought before Kampala Chief Magistrate Mohammed Saied who acquitted them in the judgment that has stood the test of time holding that:

The offence of sedition was not designed to strangle free speech and that of a vigorously and fearless press was one of the foundations of strong government. Nevertheless, the government wanted its victims, so the two were transported to a ranch on the lake where Noegy languished for a year before going to exile in Ghana while Abu Mayanja remained in detention until 1971.

This decision can be distinguished from the earlier mentioned decision surrounding this period and other like **Shah v. AG (1969) EA, Lumu & Others (1966), Re Ibrahim (1970) EA**. In the foregoing case, given the court attempted to make a strong statement for the independence of judiciary.

THE FORMAL DESTRUCTION OF CONSTITUTIONALISM - AMIN'S MILITANT POLITICS (1971-79)

The 1966 crisis had propelled Amin to the forefront of Uganda political scene. It was not surprising that upon the departure of Obote for the Commonwealth conference in Singapore, on the morning of 1971, the army announced that it had staged a coup d'état in order to save the bad situation from getting worse and mark the end of militant politics that characterized the Obote regime.

The Amin Coup listed 18 grievances against Obote government more significant were:

(i) Violations of human rights through detentions and strangulation of political freedom,

(ii) State of emergency since 1969, and

(ii) Corruption, nepotism and tribalism e.t.c. however, by the time Amin was deposed, his government had violated all the 18 points listed.

The legal constitutional instrument that ushered in the Amin regime was a proclamation known as Legal Notice No.1 of 1971. Its significance as was with all subsequent Legal Notices No.1 of 1979, UNLF and No.1 of 1986 NRM was the introduction of a new constitutional legal order in Kelsenian terms as well as to bestow legitimacy on the new regime/government.

The constitution of Uganda was invariably the 1967 constitution read together with Legal Notice No.1 of 1971. The legal notice comprised of the following features;

- (i) It suspended several articles of the 1967 constitution (art. 1 supremacy of the constitution) in effect Amin himself became the supreme law of the land and was no longer subject to the constitution and he ruled by decrees.*
- (ii) Art 3 (on amendment of the constitution by parliament was removed, the constitution could now be amended by Amin.*
- (iii) Art.63 on powers to make laws which would be vested in Amin through promulgation of decrees.*
- (iv) Chapter IV on the qualifications and election of the executive/president was now to be designated the head of state. (cf: constitutional (modification) Decree No.5 of 71.*
- (v) Chapter 4 on parliament with legislative powers was now vested in Amin (cf: Parliamentary power (vested) Decree no.8/1971.*

The immediate period was characterized by jubilation in some parts of Uganda, in particular Buganda with the return of Mutesa's body.

While other parts faced purges and blood shed especially of the Langi and Acholi soldiers in the armed forces. Similarly, all political prisoners were released (Ibingira, Abu Mayanja, Bendicto Kiwanuka e.t.c.)

The majority were co-opted into the initial primarily civilian government.

But within a short time, a clamp down on opposition began and the system of government took on the character of the military junta with all institutions militarized. Amin introduced dictatorship and within a space of 2 years he had completely turned the whole country into an absolute military institution.

- (1) Although Amin had released political prisoners detained by Obote his first act was to suspend political party activities which was secured by the Suspension of of Political Parties Decree no.14 of 1971.

It in part provided:

No person was allowed to manage, take part in, collect subscription for, raise funds or otherwise encourage political party activities.

Public meeting or processions designed with political motives were banned as are signs, symbols, flags, songs, statements, slogans and names of political parties. (a replica of George Orwell's Animal Farm.)

The punishment imposed for contravention of this law were very severe. This invariably forced any political activity underground. Several other laws were passed in the course of time to deal with political dissent leading to the violation of rights and freedoms. These included;

- (i) **The Detention (Prescription of Time Limit) Decree no.1 of 1971** which allowed for indefinite detention without trial
- (ii) **The Newspapers and Publications (amendment) Decree No.35 of 1972** which permitted the minister of information to prohibit the publication of any newspapers for an indefinite period if not satisfied that it was in public interest.
- (iii) **Military Police (Powers of Arrest) Decree 1971** which gave the military powers of arrest over civilians in effect removing them from the police.

By this decree, the armed forces and state intelligence services eg SRB could carry out arrests, summary trials as well as executive sentences which not only eroded the traditional policing function but also judicial powers. The implications of this decree were remarked upon by the Justice Russell in the case of **Efulayimu Bukenya v. AG (1972) HCB 87**, which together with the case of the British citizen would led to Ben Kiwanuka disappearance are the only significant decisions of this period.

- (2) In all these aspects of the creation of totalitarian regime the most drastic was the assault against the judicial arm which was secured through the establishment of quasi-judicial organs not traditional courts empowered to exercise judicial power over civilians. These were established by virtue of the Trial by Military Tribunals Decree No.12 of 1973, (comprised by characters with such fancy names like commander suicide, captain no parking etc a similar quasi-judicial organ was the Economic Crimes Tribunal for offences of smuggling, hoarding etc.
- (3) The erosion of judicial power reached its pinnacle with the promulgation of Proceedings against the Government (protection) Decree No.8 of 1972. It was promulgated following the release of a British citizen on an application for a writ of habeas corpus by Chief Justice Ben Kiwanuka. The decree like the ones in Obote regime gave immunity by ousting the jurisdiction of courts to grant relief, as regards actions for injuries resulting from measures taken to protect the public and security and the enforcement of discipline, law and order. With the jurisdiction of the courts ousted and the supremacy of the constitution a forgone matter, the military government was in effect beyond the check (as to its acts), even the colonial period had ushered in non-constitutionalism to some extent in Uganda's history.

If Obote had introduced militaristic politics, Amin carried it to its logical conclusion in terms of the reign of terror in which human rights violations ranging from illegal detentions, torture, extra-judicial killings, destruction and deprivation of property; of Asian, individuals etc.

THE UNLF PERIOD AND CONSTITUTIONALISM, OVERTHROW OF AMIN OBOTE II AND UNLF REGIMES

Between 1979 and 1980, Uganda had three governments.

Two were created under the banner of UNLF, whose diverse composition of exiles and rebel elements and lack of cohesive objectives plunged Uganda into more chaos and violence.

The UNLF had been formed as a guerrilla organization in Tanzania. Two weeks later it found itself at the head of the country Kanyeihamba writes. There was no national army but rather several armed groups.

The largest, Kikoosi Maalum was allied to Obote.

The second led by Yoweri Museveni, vehemently opposed to Obote's return to power.

The scene was set for further conflict.

The first UNLF President, Yusuf K. Lule managed only 68 days in office before he was forced out by the conspiracies of that involved both UNLF and Nyerere the President of Tanzania.

The next president Godfrey L. Binaisa, lasted until May 1980 when he was removed by Paulo Muwanga, again with the tacit approval of the Tanzania forces.

Muwanga's regime returned Milton Obote through elections of questionable validity.

Obote's second coming was a period of terror in Uganda as he sought to hold state power regardless of the cost.

Several armed opposition groups which included the national Resistance Movement (NRM), rejected the results of the elections and took up rebellion on the pretext that Obote's regime was illegitimate.

As many as a million people may have lost their lives in civil war that resulted.

For another five years, unspeakable atrocities were visited on the Ugandan people both through the machinery of state and through sabotage by rebels

Grave violations of people's rights and mismanagement were the order of the day. Obote had learnt his lesson regard in the military, and he let them have their way;

When soldiers were not paid, they were free to go raiding in the population. The state had dissolved into anarchy and civil institutions had broken down.

Not surprisingly, economic mismanagement continued during the second Obote regime. Desperate ideologies in the factionalized UNLF hindered the articulation of meaningful economic policy.

NRM/A GOVERNMENT AND CONSTITUTIONALISM IN UGANDA 1986-1995.

Obote's second government was toppled on 27 July 1985, ironically by sections of his army. The bush war which had started in 1981, also ended shortly on 25 January 1986 with victory for the NRM. Led by Yoweri Museveni, the NRM had begun its 'people's war' in 1981.

In a 10 point programme, it declared that the people had a right to defend themselves against those who threatened the democratic order and human rights, and that no more would the state be used to violate the rights of the people.

The NRM formed a broad based government, with promise of elections after 1989, but did not carry through, on the pretext that a new constitution was not ready.

Over the next eight years an official commission produced a draft constitution, which was debated in a Constituent Assembly (partly an elected body) and promulgated the 1995 Constitution

In the first election for president and members of parliament, Museveni was victorious.

In a second and more bitterly contested election of 2001, his margin was considerably reduced. The results were challenged but were upheld by Supreme Court majority of three to two.

The NRM inherited and rightly stated in its 10 point programme that any progress should be based on the defence of democracy and human rights.

Therefore, when the current constitution of republic of Uganda, 1995 was adopted, the NRM was praised for spearheading one of the most progressive constitutions in Africa.

However, the constitution has been altered essentially outlaw the formation of political parties. Ironically the once praised constitution has suffered systematic erosion erosion of rights such as freedom of speech, expression and assembly among others.

There has been a roll back of democratic gains of the early 1990s. Several attempts at legally challenging the constitutionality of many amendments through courts have failed.

I advise each student to reflect on the importance of the rights and freedoms that the 1995 constitution sought to guarantee for every Ugandan citizen, regardless of class, ethnic and political process, tolerance of dissent and difference and fundamental civil and human rights including the promotion of civil society are considered cornerstones of strong states.

Concluding remarks:

The current state of the nation of Uganda is not accidental but largely man made. The leadership errors across history have destroyed Uganda for personal gain. As citizens we must wake up to reality that it is our role to avert the slide from strong to weak and finally failed state. Recognizing the indicators and countering the establishment of authoritarian rule should remain every citizen's pre-occupation.

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